

7. Section eighteen of the Economy (Miscellaneous Provisions) Act, 1926 (which gives directions to the Board of Trade as to fixing the amount of the fees to be charged under the Merchant Shipping Acts, 1894 to 1923) is hereby repealed.

PART III.
—cont.

Repeal of
16 & 17
Geo. 5. c. 9.
s. 18.

8. This Act may be cited as the British Shipping (Assistance) Act, 1935.

Short title.

CHAPTER 8.

An Act to consolidate the Unemployment Insurance Acts, 1920 to 1934, and certain other enactments relating to those Acts.

[26th February 1935.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

PART I.

INSURED PERSONS.

1. Subject to the provisions of this Act, all persons of either sex, whether British subjects or not, being persons who have attained the minimum age for entry into insurance under this Act and are employed in insurable employment, shall be insured against unemployment in manner provided by this Act.

Persons to
be insured
against un-
employ-
ment.

2. The minimum age for entry into insurance under this Act shall be the age (not being less than fourteen years) when a person attains the age at which, under the law for the time being in force, his parents cease to be under an obligation to cause him to attend school, or, in Scotland, to receive efficient education, unless there is some reasonable excuse.

Minimum
age for
entry into
insurance.

3.—(1) For the purposes of this Act every employment specified in Part I of the First Schedule to this Act

Insurable
employ-
ment.

PART I. is an insurable employment, unless it is an excepted
—*cont.* employment, that is to say, either—

- (a) an employment specified in Part II of that Schedule; or
- (b) an employment to which Part III of that Schedule applies and which is certified by the Minister under that Part of that Schedule; or
- (c) an employment included among or added to the excepted employments by regulations made under this section.

(2) Where it appears to the Minister that the terms and conditions of service of, and the nature of the work performed by, any class of persons employed in an excepted employment are so similar to the terms and conditions of service of, and the nature of the work performed by, a class of persons employed in an insurable employment as to result in anomalies in the operation of this Act, the Minister may, by regulations made with the consent of the Treasury, either unconditionally or subject to such conditions as may be specified in the regulations, either—

- (a) provide for including the class of persons employed in insurable employment among the classes of persons employed in excepted employment; or
- (b) provide for including the class of persons employed in excepted employment among the classes of persons employed in insurable employment.

(3) The Minister may by regulations provide—

- (a) for adding, subject to such exceptions and conditions as he thinks fit, any class of employment to the excepted employments only as respects persons who are in any week employed in that class of employment to such extent (being in the opinion of the Minister inconsiderable) as may be specified in the regulations; and
- (b) for permitting persons who are employed under the same employer partly in insurable employment and partly in some other employment, to be treated for the purposes of this Act with the consent of the employer as if they

were wholly employed in insurable employment; and

PART I.
—*cont.*

- (c) that, subject to any prescribed conditions, where persons in the employment of a person resident or having his principal place of business in Great Britain are employed outside the United Kingdom, for the purpose of the execution of some particular work, in employment which, if it were employment in Great Britain would be insurable employment, they shall, if they were immediately before leaving Great Britain insured contributors, be deemed for the purposes of this Act to be, subject to any prescribed modifications or exceptions, employed in insurable employment.

(4) Where in consequence of an arrangement made by a poor law authority a person is engaged in work provided by a local authority, he shall not, if a contribution towards his remuneration is made by the poor law authority, be deemed to be employed in insurable employment :

Provided that this subsection shall not apply in the case of any person who has previously been in receipt of benefit and is employed in full-time work provided by the local authority, but, for the purpose of this proviso, a person shall not be deemed to have been employed in full-time work unless he has worked for such number of hours in each week as would normally have been worked by him if he had been employed on the same work otherwise than under such an arrangement as aforesaid.

4.—(1) If any question arises—

- (a) as to whether any employment or any class of employment is or will be insurable employment; or
(b) as to whether a person is or was an employed person;

Determina-
tion of
questions as
to insur-
ability.

that question shall be decided by the Minister subject to the provisions of section eighty-four of this Act.

(2) In determining any question as to whether any occupation in which a person is or has been employed is or was insurable employment, regard shall be had to the

PART I. nature of the work on which he is or was employed rather
—*cont.* than to the business of the person by whom he is or was
employed.

Excluded
persons.

5.—(1) Where any employed person proves that he is either—

- (a) in receipt of any pension or income of the annual value of twenty-six pounds or upwards which does not depend on his personal exertions; or
- (b) ordinarily and mainly dependent for his livelihood upon some other person; or
- (c) ordinarily and mainly dependent for his livelihood on the earnings derived by him from an occupation which is not insurable employment; or
- (d) a person employed in an occupation which is of a seasonal nature and does not ordinarily extend over more than eighteen weeks in any year and who is not ordinarily employed in any other occupation which is insurable employment;

he shall be entitled to a certificate exempting him from liability to become or to continue to be insured under this Act and while holding such a certificate shall not be insured under this Act.

(2) All claims for certificates under this section shall be made to, and all such certificates shall be granted by, the Minister in the prescribed manner and subject to the prescribed conditions:

14 & 15
Geo. 5. c. 38.

Provided that the Minister may by regulations provide that any certificates of exemption granted under section two of the National Health Insurance Act, 1924, or any class of such certificates shall have effect as if they had been granted under this section as well as under that section.

(3) The following persons shall not be insured under this Act, that is to say,—

- (a) persons who have attained the age of sixty-five years;
- (b) persons under the age of sixty-five years to whom the Second Schedule to this Act applies;
- (c) blind persons in receipt of a pension under the Old Age Pensions Acts, 1908 to 1924, as extended by section one of the Blind Persons Act, 1920.

10 & 11
Geo. 5. c. 49.

(4) Section eighty-nine of the National Health Insurance Act, 1924 (which provides for the determination by the Minister of Health of questions relating to employment) shall apply for the purposes of this Act to any question—

PART I.
—cont.

- (a) whether any employment or class of employment was such an employment as is mentioned in sub-paragraph (a) of paragraph 1 or sub-paragraph (a) of paragraph 2 of the said Second Schedule or any particular class of such an employment; and
- (b) whether a person has been a person employed in such an employment; and
- (c) as to who was the employer of a person employed in such an employment,

in like manner as if the question related to an employment within the meaning of that Act.

PART II.

CONTRIBUTIONS.

Preliminary.

6. Subject to the provisions of this Act, the funds required for providing benefit, and for making any other payments which under this Act are to be made out of the Unemployment Fund established under this Act, shall be derived partly from contributions by employed persons, partly from contributions by the employers of those persons, and partly from moneys provided by Parliament.

Source of
contribu-
tions.

7. The provisions of this Act relating to the payment of contributions shall, in the case of contributions payable in respect of persons who have attained the age of sixty-five years or to whom the Second Schedule to this Act applies, have effect subject to such modifications and adaptations as may be prescribed by the Minister after consultation as respects England with the Minister of Health and as respects Scotland with the Department of Health for Scotland, so however that all sums collected on account of contributions so payable shall be paid into the Unemployment Fund.

Modifica-
tion of
provisions
as to con-
tributions
in case of
certain
excluded
persons.

PART II.

—cont.

Liability of
employers
and em-
ployed
persons for
contribu-
tions.

Contributions of Employers and Employed Persons.

8.—(1) Subject to the provisions of this Act, every employed person (other than an excluded person) of the classes set out in the first column of the Third Schedule to this Act, and every employer of any such person, shall be liable to pay weekly contributions at the respective rates set out in the second and third columns of that Schedule.

(2) Except where regulations under this Act otherwise prescribe, the employer shall, in the first instance, be liable to pay both the contribution payable by himself and also, on behalf of and to the exclusion of the employed person, the contribution payable by that person, and for the purposes of this Act contributions paid by an employer on behalf of an employed person shall be deemed to be contributions by the employed person.

(3) The employer of an excluded person shall be liable to pay the like contributions as would have been payable by him as employer's contributions if that person had not been excluded :

Provided that no contributions shall be payable in respect of a blind person in receipt of a pension under the Old Age Pensions Acts, 1908 to 1924, as extended by section one of the Blind Persons Act, 1920.

(4) A weekly contribution shall be payable for each calendar week during the whole or any part of which an employed person has been employed :

Provided that—

- (a) where one weekly contribution has been paid in respect of an employed person for any week, no further contribution shall be payable in respect of him for the same week; and
- (b) where no services have been rendered by an employed person during any week and no remuneration is paid in respect of that week, the employer shall not be liable to pay any contribution either on his own behalf, or on behalf of the employed person in respect of that week.

(5) If any employer or employed person fails or neglects to pay any contribution which he is liable under this Act to pay, he shall for each offence be liable on summary conviction to a fine not exceeding ten pounds.

9.—(1) Notwithstanding any contract to the contrary, the employer shall not be entitled to deduct from the wages of, or otherwise to recover from, the employed person the employer's contribution.

(2) If an employer deducts or attempts to deduct from the wages or other remuneration of an employed person the whole or any part of the employer's contribution, he shall for each offence be liable on summary conviction to a fine not exceeding ten pounds.

10.—(1) Subject to the provisions of this section, and subject to any regulations made by the Minister under this Act, the employer shall be entitled to recover from the employed person in accordance with the provisions of this section the amount of any contributions paid by him on behalf of that person.

(2) Where the employed person receives any wages or other pecuniary remuneration from the employer, the amount of any contribution paid by the employer on behalf of the employed person shall, notwithstanding the provisions of any Act or any contract to the contrary, be recoverable by means of deductions from the wages of that person or from any other remuneration due from the employer to that person and not otherwise:

Provided that no such deduction may be made—

- (a) from any wages or remuneration other than such as are paid in respect of the period or part of the period for which the contribution is payable; or
- (b) in excess of the sum which represents the amount of the contributions for the period (if that period is longer than a week) in respect of which the wages or other remuneration are paid.

(3) Where the employed person does not receive any wages or other pecuniary remuneration from the employer, but receives such remuneration from some other person, the amount of any contribution paid by the employer on behalf of the employed person shall (without prejudice to any other means of recovery) be recoverable summarily as a civil debt, if proceedings for the purpose are instituted within three months from the date on which the contribution was payable.

(4) Where the employed person does not receive wages or other pecuniary remuneration either from his

PART II.
—cont.
Employer's contribution irrecoverable from employed person.

Recovery by employer of contributions paid on behalf of employed person.

PART II.
—cont.

employer or from any other person, the employer shall be liable to pay the contributions payable both by himself and the employed person and shall not be entitled to recover any part thereof from the employed person.

(5) Any sum deducted by an employer from wages or other remuneration under this section shall be deemed to have been entrusted to him for the purpose of paying the contribution in respect of which it was deducted.

Persons to
be treated
as em-
ployers in
certain
cases.

11.—(1) Where the employed person is employed by more than one person in any calendar week, the first person employing him in that week or such other employer or employers as may be prescribed shall be deemed to be the employer for the purposes of the provisions of this Act relating to the payment of contributions.

(2) The Minister may by regulations provide—

- (a) that in any cases or any classes of cases where employed persons work under the general control and management of some person other than their immediate employer, such as the owner, agent or manager of a mine or quarry, or the occupier of a factory or workshop, that other person shall, for the purposes of the provisions of this Act relating to the payment of contributions, be treated as the employer; and
- (b) for allowing that other person to deduct the amount of any contributions (other than employer's contributions) which he may become liable to pay from any sums payable by him to the immediate employer, and for enabling the immediate employer to recover from the employed persons the like sums and in the like manner as if he were liable to pay the contributions.

Decision of
questions
as to con-
tributions.

12.—(1) If any question arises—

- (a) as to who is or was the employer of any employed person; or
- (b) as to the rate of contribution payable under or in pursuance of this Act by or in respect of any person or class of persons; or
- (c) as to the rates of contribution payable in respect of any employed person by the employer and that person respectively;

that question shall be decided by the Minister subject to the provisions of section eighty-four of this Act.

PART II.
—cont.

(2) Where it has been decided by the Minister that contributions under this Act are not payable in respect of any person or any class of persons, and that decision is subsequently revised or reversed on appeal so as to make contributions payable in respect of that person or that class of persons, contributions shall be so payable only as from the date on which the decision was so revised or reversed.

(3) Subject to the provisions of the last foregoing subsection, the Minister may make regulations with respect to the payment of contributions during any period intervening between any application for the determination of any question, and the final determination of the question.

13.—(1) The Minister may, in such cases and on such conditions as he may prescribe, make an arrangement with any employer liable to pay contributions under this Act or under the National Health and Contributory Pensions Acts, whereby, in respect of persons engaged by that employer through an employment exchange or in the employ of that employer at the date of the arrangement, the performance of all or any of the duties required under this Act or those Acts to be performed by the employer in respect of those persons, whether on his own behalf or on behalf of the employed persons, shall be undertaken on behalf of the employer by the employment exchange.

Arrange-
ments with
respect to
persons
engaged
through
employ-
ment
exchanges.

(2) In this section the expression “National Health and Contributory Pensions Acts” means the National Health Insurance Acts, 1924 to 1932, and the Widows’, Orphans’ and Old Age Contributory Pensions Acts, 1925 to 1932.

14. Regulations made by the Minister under this Act—

(a) shall provide for the return to a person and to his employer of any contributions paid by them respectively within the prescribed period under the erroneous belief that the contributions were payable in respect of that person under the general provisions of this Act, subject, in the case of that person’s

Return of
contribu-
tions paid
erroneously.

PART II.
—cont.

contributions, to the deduction of an amount not exceeding the aggregate sum received by him by way of benefit since the date on which the first contribution paid in error within the prescribed period was paid; and

- (b) may provide, in the case of contributions paid by an employer on behalf of any person employed by him and not recovered from that person, for the return under this section being made to the employer instead of to that person :

Provided that no return of contributions shall be made under this section except on an application made in the prescribed manner and within the prescribed period, not being less than one year from the date on which the contributions were paid.

Unemployment Insurance Stamps, Books and Cards.

Regulations
as to pay-
ment of
contribu-
tions by
stamps, &c.

15.—(1) Subject to the provisions of this Act, the Minister may make regulations providing for any matters incidental to the payment and collection of contributions under this Act, and in particular providing—

- (a) for payment of contributions by means of adhesive or other stamps (in this Act referred to as “unemployment insurance stamps”) affixed to or impressed upon books or cards (in this Act respectively referred to as “unemployment books” and “unemployment cards”) or otherwise, and for regulating the manner, times, and conditions in, at and under which unemployment insurance stamps are to be affixed or impressed or payments are otherwise to be made;
- (b) for the entry in or upon unemployment books or cards of particulars of contributions and benefit paid in the case of the persons to whom the unemployment books or cards relate;
- (c) for the issue, sale, custody, production and delivery up of unemployment books or cards and the replacement of unemployment books or cards which have been lost, destroyed or defaced.

(2) If provision is made by the regulations aforesaid for the payment of contributions, at the option of the persons liable to pay, either—

PART II.
—cont.

(a) by means of adhesive stamps; or

(b) by some alternative method, the use of which involves greater expense in administration to the Government departments concerned than would be incurred if the contributions were paid by means of adhesive stamps;

a provision may be included in the regulations for requiring any person who adopts the alternative method to pay to the Minister such fees as may be determined by the Minister, with the concurrence of the Treasury, to represent the difference between the expenses incurred by the said departments by reason of the fact that the alternative method has been adopted and the expenses which would have been incurred by the said departments if the contributions payable by that person had been paid by means of adhesive stamps.

(3) Where under regulations made by the Minister any sum has been paid out of the Unemployment Fund by way of reward for the return of an unemployment book or card which has been lost, the person responsible for the custody of the book or card at the time of its loss shall be liable to repay the sum so paid, not exceeding one shilling in respect of any one occasion.

16.—(1) Unemployment insurance stamps shall be prepared and issued in such manner as the Postmaster-General, with the consent of the Treasury, may direct.

Issue of
unemploy-
ment
insurance
stamps.

(2) The Postmaster-General may by regulations provide for applying with the necessary adaptations, as respects unemployment insurance stamps, all or any of the provisions (including penal provisions) of the Stamp Duties Management Act, 1891, as amended by any subsequent enactment, and section nine of the Stamp Act, 1891, as so amended, and section sixty-five of the Post Office Act, 1908.

54 & 55 Vict.
cc. 38 & 39.

8 Edw. 7.
c. 48.

(3) The Postmaster-General may provide for the sale of unemployment insurance stamps through the Post Office.

17.—(1) If any person buys, sells or offers for sale, takes or gives in exchange, or pawns or takes in pawn any unemployment card, unemployment book, or used

Offences in
relation to
unemploy-
ment cards,

PART II.
—cont.
books and
stamps.

unemployment insurance stamp, he shall be liable on summary conviction to a fine not exceeding twenty pounds or to imprisonment for a term not exceeding three months or to both such fine and imprisonment.

(2) In any proceedings under the last foregoing subsection with respect to used stamps, a stamp shall be deemed to have been used if it has been cancelled or defaced in any way whatsoever, and whether it has actually been used for the purpose of payment of a contribution or not.

(3) If any person for any purpose whatsoever knowingly makes a false representation that he or any other person is the person specified in an unemployment book or card as being the person to whom the book or card was issued, he shall be liable on summary conviction to a fine not exceeding ten pounds:

Provided that nothing in this subsection shall be taken to prejudice the provisions of subsection (1) of section eighty-six of this Act.

Enforcement of Payment of Contributions.

Recovery of
contribu-
tions on
prosecutions
under Act.

7 Edw. 7.
c. 17.

18.—(1) In any case where an employer has been convicted of the offence under subsection (5) of section eight of this Act of failing or neglecting to pay a contribution, or has been charged with such an offence and an order has been made under subsection (1) of section one of the Probation of Offenders Act, 1907, he shall be liable to pay to the Unemployment Fund a sum equal to the amount which he has failed or neglected to pay.

(2) In any case where—

(a) an employer is convicted of an offence under section thirteen of the Stamp Duties Management Act, 1891, as applied by regulations made under section sixteen of this Act, or of the offence under subsection (2) of section eighty-six of this Act of contravening or not complying with the requirements of the regulations made under this Act, or is charged with any such offence and an order is made under subsection (1) of section one of the Probation of Offenders Act, 1907; and

- (b) the evidence on which he is convicted, or on which the order is made shows that the employer, for the purpose of paying any contribution which he was liable to pay, has affixed to any unemployment book or card any stamp which had been cancelled or defaced in any way whatever, whether it had actually been used for the purpose of payment of a contribution or not;

PART II.
—cont.

the employer shall be liable to pay to the Unemployment Fund a sum equal to the amount of the contribution in respect of which the stamp was affixed.

(3) On any such conviction, or on the making of any such order, as is mentioned in either of the last two foregoing subsections, if notice of intention to do so has been served with the summons or warrant, or, in Scotland, with the complaint, evidence may be given of the failure or neglect on the part of the employer to pay other contributions in respect of the same person during the two years preceding the date of the offence, and on proof of such failure or neglect the employer shall be liable to pay to the Unemployment Fund a sum equal to the total of all the contributions which he is so proved to have failed or neglected to pay.

(4) Any sum ordered by a court in England to be paid to the Unemployment Fund under this section shall be recoverable as a penalty.

(5) Any sum paid by an employer under the foregoing provisions of this section shall be treated as a payment in satisfaction of the unpaid contributions, and the employed person's portion of those contributions shall not be recoverable by the employer from the employed person.

(6) If the employer, being a company, fails to pay to the Unemployment Fund any sum which the company has been ordered to pay under this section, that sum, or such part thereof as remains unpaid, shall be a debt due to the Unemployment Fund jointly and severally from any directors of the company who knew, or could reasonably be expected to have known, of the failure or neglect to pay the contribution or contributions in question.

PART II.
—*cont.*

(7) Nothing in this section shall be construed as preventing the Minister from recovering any sums due to the Unemployment Fund by means of civil proceedings.

Civil proceedings by employees against employers for neglect to comply with provisions as to contributions.

19.—(1) Where an employer has failed or neglected—

- (a) to pay any contributions which under this Act he is liable to pay in respect of any employed person in his employment; or
- (b) to comply, in relation to any such person, with the requirements of any regulations relating to the payment and collection of contributions;

and by reason thereof that person has lost, in whole or in part, the benefit to which he would have been entitled under this Act, that person shall be entitled to recover summarily from the employer as a civil debt a sum equal to the amount of the benefit so lost.

(2) Proceedings may be taken under this section notwithstanding that proceedings have been taken under any other provision of this Act in respect of the same failure or neglect.

(3) Proceedings under this section may, notwithstanding any enactment to the contrary, be brought at any time within one year after the date on which the employed person, but for the failure or neglect of the employer, would have been entitled to receive the benefit which he has lost.

Priority of contributions in cases of winding up and bankruptcy.
19 & 20
Geo. 5. c. 23.

20.—(1) Amounts due from a company in respect of contributions under this Act shall be paid, subject to and in accordance with the provisions of sections seventy-eight, two hundred and sixty-four and two hundred and ninety-eight of the Companies Act, 1929, in priority to other debts of the company.

(2) The following enactments (which relate to priority of debts in bankruptcy), namely,—

4 & 5 Geo. 5.
c. 59.

- (a) paragraph (e) of subsection (1) of section thirty-three of the Bankruptcy Act, 1914; and

3 & 4 Geo. 5.
c. 20.

- (b) paragraph (e) of subsection (1) of section one hundred and eighteen of the Bankruptcy (Scotland) Act, 1913;

shall have effect as though, for the references therein to contributions payable under the National Insurance Act, 1911, in respect of workmen in insured trades, there were substituted references to contributions payable under this Act in respect of employed persons, and as though in each of the said paragraphs (e) twelve months were substituted for four months.

PART II.
—cont.
1 & 2 Geo. 5.
c. 55.

Contributions out of Moneys provided by Parliament.

21.—(1) There shall, subject to the provisions of this section, be paid out of moneys provided by Parliament, in respect of each weekly contribution paid by an employer in respect of an employed person, a contribution at a rate equal to one-half of the aggregate amount of the contributions paid in respect of the employed person by himself and his employer, or, in the case of an excluded person, paid by his employer.

Contribu-
tions out
of moneys
provided by
Parliament.

(2) For the purpose of calculating the sums to be contributed under this section, while and in so far as contributions are paid by means of unemployment insurance stamps, the number of contributions paid in any year in respect of employed persons of each class mentioned in the first column of the Third Schedule to this Act shall be deemed to be represented by the number of stamps appropriate to contributions in respect of employed persons of that class sold in that year, after deducting—

- (a) the number (calculated in the prescribed manner) of stamps which have been used for the purpose of paying contributions otherwise than under the general provisions of this Act; and
- (b) the number of stamps in respect of which a refund has been made; and
- (c) such contributions as have been returned in respect of persons in respect of whom contributions were paid under the erroneous belief that they were payable in respect of those persons under the general provisions of this Act.

(3) The sums to be contributed under this section in any year shall be paid in such manner and at such times as the Treasury may determine.

PART III.

BENEFIT.

Statutory Conditions for Receipt of Benefit.

First statutory condition for receipt of benefit.

22.—(1) The first statutory condition for the receipt of benefit by an insured contributor is that he proves that not less than thirty contributions have been paid in respect of him as an insured contributor in respect of the two years immediately preceding the date on which a claim for benefit is made.

(2) In determining whether an insured contributor has proved that the first statutory condition is fulfilled in his case, no account shall be taken of any contributions paid in respect of him for any period during which he was not bona fide employed.

(3) If an insured contributor proves in the prescribed manner that he was, during any periods falling within the said period of two years—

(a) rendered incapable of work by reason of some specific disease or by bodily or mental disablement; or

(b) employed in any excepted employment;

subsection (1) of this section shall have effect as if for the said period of two years there were substituted a period of two years increased by the said periods of incapacity or of such employment as aforesaid, but so as not to exceed in any case four years.

(4) If an insured contributor who is, or who has at any time during the two years immediately preceding the date of a claim for benefit been, in receipt of a pension paid out of moneys provided by Parliament in respect of a disability contracted by him during the late war, proves that the non-fulfilment in his case of the first statutory condition is due to that disability, he shall, if he proves that not less than ten contributions were paid in respect of him as an insured contributor during the said period of two years, be treated for the purposes of this Act as if he had proved that that condition was fulfilled in his case.

(5) After an insured contributor has at the beginning of his benefit year proved that the first statutory condition is fulfilled in his case, then, subject to and in

accordance with regulations made by the Minister, he shall be treated throughout the remainder of that benefit year as if that condition continued to be so fulfilled.

PART III.
—cont.

23. The second statutory condition for the receipt of benefit by an insured contributor is that he proves that he has made application for benefit in the prescribed manner and that since the date of the application he has been continuously unemployed.

Second
statutory
condition
for receipt
of benefit.

24.—(1) The third statutory condition for the receipt of benefit by an insured contributor is that he proves that he is capable of and available for work.

Third
statutory
condition
for receipt
of benefit.

(2) An insured contributor shall not be deemed to have failed to fulfil the third statutory condition by reason only that he is attending at an authorised course, or at a training course or course of instruction approved by the Minister in his case.

25.—(1) The fourth statutory condition for the receipt of benefit by an insured contributor is that, if the Minister has, for the purpose of giving him an opportunity of becoming or keeping fit for entry into or return to regular employment, required him to attend at an authorised course, he proves either that he duly attended in accordance with the requirement or that he had good cause for not so attending.

Fourth
statutory
condition
for receipt
of benefit.

(2) For the purposes of the fourth statutory condition, an insured contributor who by reason of his misbehaviour while attending at an authorised course has been required to discontinue his attendance thereat during any period, shall not be deemed to have duly attended at the course or to have had good cause for not so attending during that period, or during such part thereof as may be determined on any subsequent claim to benefit.

Disqualifications for Benefit.

26.—(1) An insured contributor who has lost employment by reason of a stoppage of work which was due to a trade dispute at the factory, workshop or other premises at which he was employed shall be disqualified for receiving benefit so long as the stoppage of work continues, except in a case where he has, during the stoppage of work, become bona fide

Disqualifi-
cation
where em-
ployment
lost through
trade dis-
pute.

PART III.
—*cont.*

employed elsewhere in the occupation which he usually follows, or has become regularly engaged in some other occupation :

Provided that this subsection shall not apply in a case where the insured contributor proves—

- (a) that he is not participating in or financing or directly interested in the trade dispute which caused the stoppage of work; and
- (b) that he does not belong to a grade or class of workers of which, immediately before the commencement of the stoppage, there were members employed at the premises at which the stoppage is taking place, any of whom are participating in or financing or directly interested in the dispute.

(2) Where separate branches of work which are commonly carried on as separate businesses in separate premises are in any case carried on in separate departments on the same premises, each of those departments shall for the purposes of this section be deemed to be a separate factory or workshop or separate premises, as the case may be.

Disquali-
fication
where em-
ployment
lost through
misconduct
or volun-
tarily.

27. An insured contributor who loses his employment through his misconduct, or who voluntarily leaves his employment without just cause, shall be disqualified for receiving benefit for a period of six weeks or such shorter period as may be determined by the court of referees or the umpire, as the case may be, being a period beginning as from such date as may be so determined.

Disqualifi-
cation for
refusing or
failing to
apply for
work.

28.—(1) If, on a claim for benefit, it is proved by an officer of the Ministry of Labour—

- (a) that the claimant, after a situation in any employment which is suitable in his case has been notified to him by an employment exchange or other recognised agency, or by or on behalf of an employer, as vacant or about to become vacant, has without good cause refused or failed to apply for that situation or refused to accept that situation when offered to him; or
- (b) that the claimant has neglected to avail himself of a reasonable opportunity of suitable employment; or

- (c) that the claimant has without good cause refused or failed to carry out any written directions given to him by an officer of an employment exchange with a view to assisting him to find suitable employment, being directions which were reasonable having regard both to the circumstances of the claimant and to the means of obtaining that employment usually adopted in the district in which the claimant resides;

PART III.
—cont.

the claimant shall be disqualified for receiving benefit for a period of six weeks or such shorter period as may be determined by the court of referees or the umpire, as the case may be, being a period beginning as from such date as may be so determined.

(2) For the purposes of this section employment shall not be deemed to be suitable employment in relation to any claimant if it is either—

- (a) employment in a situation vacant in consequence of a stoppage of work due to a trade dispute; or
- (b) employment in his usual occupation in the district where he was last ordinarily employed at a rate of wage lower, or on conditions less favourable, than those which he might reasonably have expected to obtain having regard to those which he habitually obtained in his usual occupation in that district, or would have obtained had he continued to be so employed; or
- (c) employment in his usual occupation in any other district at a rate of wage lower, or on conditions less favourable, than those generally observed in that district by agreement between associations of employers and of employees, or, failing any such agreement, than those generally recognised in that district by good employers.

(3) After the lapse of such an interval from the date on which an insured contributor becomes unemployed as, in the circumstances of the case, is reasonable, employment shall not be deemed to be unsuitable by reason only that it is employment of a kind other than employment in the usual occupation of the insured contributor, if it is employment at a rate of wage not lower, and on

PART III.
—cont.

conditions not less favourable, than those generally observed by agreement between associations of employers and of employees, or, failing any such agreement, than those generally recognised by good employers.

Disquali-
fication
while in
prison or
workhouse.

29. An insured contributor shall be disqualified for receiving benefit while he is an inmate of any prison or any workhouse or other institution supported wholly or partly out of public funds :

Provided that this section shall not apply in the case of an insured contributor who is an inmate of an institution used as a place of residence for workers if he proves that he was an inmate of the institution immediately before he became unemployed and that during the time when he was employed he paid the whole or a substantial part of the cost of his maintenance as such an inmate.

Miscel-
laneous dis-
qualifica-
tions.

30.—(1) An insured contributor shall be disqualified for receiving benefit while he is in receipt of any sickness or disablement benefit under the National Health Insurance Acts, 1924 to 1932.

(2) Subject to the provisions of this Act relating to Northern Ireland, the Isle of Man and the Channel Islands, an insured contributor shall be disqualified for receiving benefit while he is resident, whether temporarily or permanently, outside Great Britain.

*Right to Benefit and Supplementary Provisions
relating thereto.*

Right to
benefit,
and periods
in respect
of which it
is payable.

31.—(1) An insured contributor who has attained the age of sixteen years and is unemployed shall, if he proves that the statutory conditions are fulfilled in his case, and if he is not disqualified under this Act for the receipt of benefit, be entitled, subject to the provisions of this Act, to receive in a benefit year benefit—

(a) in respect of periods not exceeding in the aggregate one hundred and fifty-six days; and

(b) if qualified for additional days under the provisions of the next following subsection, in respect of additional days of which the maximum number shall be computed in manner provided by that subsection.

(2) The following provisions shall have effect with respect to additional days—

PART III.
—cont.

- (a) an insured contributor shall be qualified for additional days if at the beginning of the benefit year five insurance years have elapsed since the beginning of the insurance year in which he first became such a contributor, so, however, that a person shall cease to be so qualified if at the beginning of any benefit year five consecutive insurance years have elapsed without contributions being paid in respect of him as an insured contributor, but, upon contributions being again so paid, shall be treated for the purposes of this paragraph as if he had then first become an insured contributor;
- (b) the maximum number of additional days in any benefit year shall be computed, in the case of an insured contributor qualified for such days, by allowing to him days at the rate of three for every five contributions paid in respect of him as an insured contributor in respect of the last five years, less one day for every five days in respect of which benefit has been paid to him in respect of the benefit years which ended in the last five years.
- (3) For the purposes of paragraph (b) of the last foregoing subsection—
 - (a) the expression “the last five years” means the period of five complete insurance years last preceding the beginning of the benefit year in respect of which the computation of additional days is made;
 - (b) every two contributions paid in respect of a person as an insured contributor under the age of eighteen years shall be reckoned as one contribution;
 - (c) fractions of a day shall be disregarded.
- (4) An insured contributor who has in any benefit year exhausted his benefit rights shall not thereafter be entitled to benefit in respect of any day in that benefit year, nor shall he become entitled to benefit in his next benefit year before the Monday next after the end of the calendar week for which there is paid the last of the ten

PART III. contributions mentioned in paragraph (b) of subsection (1)
—*cont.* of the next following section of this Act.

(5) In calculating contributions for the purposes of the last three foregoing subsections, no account shall be taken of any contributions paid in respect of an insured contributor for any period during which he was not bona fide employed.

(6) Benefit shall be payable in respect of each week after the first week of a continuous period of unemployment.

(7) No person shall receive benefit in respect of any period of less than one day.

Reckoning
of benefit
years.

32.—(1) For the purposes of this Act, the expression “benefit year” means, in relation to an insured contributor, the period of twelve months beginning on the date on which, on a claim for benefit, he proves for the first time after the commencement of this Act—

(a) that the first statutory condition is fulfilled in his case; and

(b) in the case only of an insured contributor who has exhausted his benefit rights in his last preceding benefit year, also that contributions have been paid in respect of him for ten weeks since the Sunday last before the last day in that benefit year in respect of which he received benefit;

and every subsequent period of twelve months commencing on the date on which that contributor on a claim for benefit proves the matters aforesaid for the first time after the termination of his last preceding benefit year:

Provided that—

(i) where before the commencement of this Act and after the twenty-fifth day of July, nineteen hundred and thirty-four, an insured contributor proved the matters aforesaid, the expression “benefit year” in relation to him means the period of twelve months beginning on the date on which he proved those matters for the first time after the said twenty-fifth day of July and every

such subsequent period of twelve months as aforesaid; and

PART III.
—cont.

- (ii) this subsection shall have effect subject to the provisions of section one hundred and eleven of this Act.

(2) If, in the case of any insured contributor, it is found that he has been treated in error as having begun his benefit year on any date by reason of his having been wrongly treated as having proved any of the matters aforesaid on that date, his benefit year shall nevertheless be deemed to have begun on that date, but he shall not be entitled to benefit during the remainder of that year until he proves those matters.

(3) For the purposes of determining whether an insured contributor has exhausted his benefit rights in his last preceding benefit year, if it is proved by an officer of the Ministry of Labour—

- (a) that he has not made a claim for benefit in respect of any days in that year in respect of which he would have been entitled thereto if he had made a claim therefor; and
- (b) that there is reasonable cause to believe that his omission to make the claim was with intent to avoid the necessity of proving the matters set out in paragraph (b) of subsection (1) of this section;

the insured contributor shall be deemed to have received benefit in respect of those days unless he proves that the omission was not with the intent aforesaid.

33. The Minister may by regulations make provision as to the circumstances in which and the extent to which contributions paid in error and sums paid to a person by way of benefit while he was not entitled thereto are to be taken into account for the purposes of the last two foregoing sections of this Act.

Reckoning
of contri-
butions and
benefit paid
in error.

34. Where, owing to the fact that the wages or other remuneration of an insured contributor are paid at intervals greater than a week, or for any other like reason, contributions are paid in respect of him at intervals greater than a week, he shall be entitled, for the purpose of determining the number of contributions which are to be taken as standing at any time to his

Reckoning
of contribu-
tions paid
at intervals
greater than
a week.

PART III. credit, to treat each of those contributions as being such
—*cont.* number of contributions as there are weeks in the period
for which the contribution was paid.

Reckoning
of periods
of unem-
ployment.

35.—(1) Any three days of unemployment, whether consecutive or not, within a period of six consecutive days shall be treated as a continuous period of unemployment, and any two such continuous periods separated by a period of not more than ten weeks shall be treated as one continuous period of unemployment, and in this Act the expression “continuously unemployed” shall be construed accordingly.

(2) The Minister may by regulations prescribe that a period of consecutive days shall, for the purposes of the last foregoing subsection, begin or end on such day as may be prescribed and that such a period may be inclusive or exclusive of Sundays.

(3) Any time during which an insured contributor fails to fulfil the second, third or fourth statutory condition or is, under the provisions of this Act, disqualified for receiving benefit or to be deemed not to be unemployed, shall be excluded in the computation of continuous periods of unemployment, unless he proves that the failure to fulfil the condition, or the disqualification, was due to incapacity for work arising from some specific disease or bodily or mental disablement.

(4) Save as otherwise provided by regulations made in accordance with the provisions of this subsection, a continuous period of unemployment shall be deemed to begin on the date on which the insured contributor makes application for benefit in the prescribed manner, but regulations may be made by the Minister for authorising some earlier date to be substituted for the date of the application :

Provided that, except in cases where good cause is shown for delay in making the application, such regulations shall not authorise the substitution of an earlier date for any purpose other than that of computing the first week of a continuous period of unemployment in a case in which the applicant, upon an application for benefit which begins his benefit year, proves in the prescribed manner that a continuous period of unemployment was in fact current at the date of that application.

(5) For the purposes of this Act an insured contributor shall not be deemed to be unemployed on any day on which he is following any occupation from which he derives any remuneration or profit, unless—

PART III.
—cont.

(a) that occupation could ordinarily have been followed by him in addition to his usual employment and outside the ordinary working hours of that employment; and

(b) the remuneration or profit received therefrom in respect of that day does not exceed three shillings and fourpence, or where the remuneration or profit is payable or is earned in respect of a period longer than a day, the remuneration or profit does not on the daily average exceed that amount.

(6) Notwithstanding that the employment of an insured contributor has terminated, he shall not be deemed to be unemployed for the purposes of this Act during a period in respect of which he continues to receive wages or receives any payment by way of compensation for the loss of, and substantially equivalent to, the remuneration which he would have received if the employment had not terminated.

Rates of Benefit.

36. Subject to the provisions of the three next following sections, benefit in the case of insured contributors of the classes set out in the first column of the Fourth Schedule to this Act shall be at the respective weekly rates set out in the second column of that Schedule :

Ordinary
rates of
benefit.

Provided that young men and young women who are between the ages of eighteen and twenty-one years and are in receipt of an increase of benefit under either of the two next following sections shall be entitled to benefit at the same rate as men and women respectively who have attained the age of twenty-one years.

37.—(1) Where an insured contributor who is entitled to benefit has a dependent child or dependent children, the weekly rate of benefit shall be increased by two shillings in respect of each such child.

Increase of
benefit in
respect of
dependent
children.

PART III.
—cont.

(2) For the purposes of this Act, the expression “dependent child” means, in relation to an insured contributor, any child, younger brother, or younger sister, of his who—

(a) is under the age of fourteen years and is maintained wholly or mainly by him; or

(b) is between the ages of fourteen and sixteen years and is maintained wholly or mainly by him and is either—

(i) a person under full time instruction at a day school; or

(ii) a person who is unable to receive such instruction by reason of physical or mental infirmity; or

(c) is between the ages of fourteen and sixteen years and is while unemployed maintained wholly or mainly by him, and is a person in whose case the statutory conditions, as hereinafter adapted for the purposes of this paragraph, are fulfilled (or would be fulfilled, if he were an insured contributor) and who is not disqualified (or would not be disqualified if he were an insured contributor) under this Act for the receipt of benefit.

(3) For the purpose of determining whether a person is a dependent child by virtue of paragraph (c) of the last foregoing subsection, the statutory conditions shall be construed subject to the following adaptations, that is to say, the first statutory condition shall be deemed to be omitted, and in the second statutory condition the words “has made application for benefit in the prescribed manner and” and the words “since the date of the application” shall be deemed to be omitted.

(4) In this section—

(a) the expression “child” includes a stepchild, adopted child (whether adopted under the Adoption of Children Act, 1926, the Adoption of Children (Scotland) Act, 1930, or otherwise), and illegitimate child;

(b) the expression “younger brother” includes a younger half-brother and a younger step-brother;

- (c) the expression "younger sister" includes a younger half-sister and a younger step-sister; PART III.
—cont.
- (d) the expression "day school," in relation to any person, does not include an authorised course, or a training course or course of instruction approved by the Minister in his case.

38.—(1) Where an insured contributor is entitled to benefit, the weekly rate of benefit shall be increased by nine shillings in the following cases, that is to say:— Increase of
benefit in
respect of
adult
dependants.

- (a) where the insured contributor has residing with him or is wholly or mainly maintaining his wife ; or
- (b) where the insured contributor is wholly or mainly maintaining her husband who is prevented by physical or mental infirmity from supporting himself; or
- (c) where the insured contributor has residing with him and is wholly or mainly maintaining—
- (i) his father or step-father who is unable by reason of physical or mental infirmity to support himself; or
 - (ii) his widowed mother, widowed step-mother, mother who has never been married, or mother whose husband is permanently disabled and unable to work; or
 - (iii) a female person who has the care of the dependent children of the insured contributor; or
- (d) where the insured contributor has previously to becoming unemployed had in his employment and thereafter continues to employ at a rate of remuneration not less than nine shillings a week some female person who is not residing with him to assist in the care of the dependent children of the insured contributor :

Provided that the requirement in paragraph (d) of this subsection as to the employment of the female person previously to the insured contributor becoming unemployed shall not apply in any case where the necessity for employing such a female person did not arise until after the date on which the insured contributor became unemployed.

PART III.
—cont.

(2) No increase of benefit shall be payable to an insured contributor under this section in respect of a wife or any other female who—

- (a) is in receipt of benefit (including benefit under a special scheme); or
- (b) is in regular wage-earning employment otherwise than as having or assisting in the care of the dependent children of the insured contributor; or
- (c) is engaged in any occupation ordinarily carried on for profit;

so, however, that the following provisions shall have effect with respect to the expressions hereinafter mentioned, that is to say—

- (i) “regular wage-earning employment” shall not (subject to the provisions of paragraph (iii) of this subsection) include employment where the amount of wage earned is less than the increase in the weekly rate of benefit;
- (ii) “occupation ordinarily carried on for profit” shall not (subject to the provisions of the said paragraph (iii)) include the performance of work for payment which is less in amount than the increase in the weekly rate of benefit;
- (iii) neither of the last two foregoing paragraphs shall apply in any case where both a wage is earned by employment and payments are received for the performance of work, unless the aggregate amount of the wage and payments is less than the increase in the weekly rate of benefit;
- (iv) “occupation ordinarily carried on for profit” shall not include the provision of board and accommodation for not more than one lodger as a member of the family.

(3) An insured contributor shall not be entitled to an increase of benefit under this section in respect of more than one person.

General provisions as to increase of benefit.

39.—(1) For the purpose of the last two foregoing sections an insured contributor shall not be deemed to be wholly or mainly maintaining any person unless the insured contributor—

- (a) when unemployed contributes towards the maintenance of that person an amount not less than

the amount of the increase of benefit received in respect of that person; and

PART III.
—cont.

- (b) when in employment (except in a case where the dependency did not arise until after the date on which the insured contributor became unemployed) contributed more than one-half of the actual cost of the maintenance of that person :

Provided that regulations may be made by the Minister providing that where—

- (i) a person is partly maintained by each of two or more insured contributors, each of whom would be entitled to an increase of benefit in respect of that person if he were wholly or mainly maintaining that person; and
- (ii) the contributions made by those two or more insured contributors towards the maintenance of that person amount in the aggregate to sums which would, if they had been contributed by any one of those insured contributors, have been sufficient to satisfy the requirements of this subsection;

that person shall be deemed for the purpose of the said sections to be wholly or mainly maintained by such of those insured contributors as may be prescribed by the regulations.

(2) No increase of benefit shall be payable to an insured contributor in respect of any person for any period before the date on which the insured contributor makes application in the prescribed manner for an increase in respect of that person :

Provided that regulations may be made for authorising some earlier date to be substituted for the date of the application in cases in which good cause is shown for the delay in making the application.

(3) Where a claim for benefit is made by an insured contributor and another insured contributor receives an increase of benefit in respect of the first-mentioned insured contributor for any period occurring between the date when the claim is made and the date when it is allowed, the benefit payable to the first-mentioned

PART III.
—cont.

insured contributor for that period shall be reduced by the amount of the increase of benefit so received by the second-mentioned insured contributor.

Determination of Claims and Questions.

Appoint-
ment of
umpires and
deputy um-
pires.

40.—(1) For the purposes of this Act an umpire and one or more deputy umpires may be appointed by His Majesty.

(2) The Minister may by regulations make provision with respect to the appointment of persons to act in the place of the umpire or any deputy umpire in the case of the unavoidable absence or incapacity of the umpire or any deputy umpire.

(3) There shall be paid out of moneys provided by Parliament to the umpire and deputy umpires, and to persons appointed to act in place of the umpire or any deputy umpire under the regulations aforesaid, such salaries or remuneration as the Treasury may determine.

(4) Unless the context otherwise requires, any reference in this Act to the umpire shall include a reference to a deputy umpire and to any person appointed as aforesaid under the said regulations.

Constitu-
tion of
courts of
referees.

41.—(1) A court of referees for the purposes of this Act shall consist of one or more members chosen to represent employers, with an equal number of members chosen to represent insured contributors, and a chairman appointed by the Minister.

(2) Panels of persons chosen to represent employers and insured contributors respectively shall be constituted by the Minister for such districts and such trades or groups of trades as the Minister may think fit, and the members of a court of referees to be chosen to represent employers and insured contributors shall be selected from those panels in the prescribed manner.

(3) The Minister may by regulations provide that any claim or question which is referred to a court of referees may, with the consent of the claimant or the person or association in whose case the question arises, but not otherwise, be proceeded with in the absence of any member or members of the court other

than the chairman, and in any such case the court shall, notwithstanding anything in this Act, be deemed to be properly constituted, and the chairman shall, if the number of the members of the court is an even number, have a second or casting vote.

PART III.
—cont.

(4) Subject as aforesaid, the constitution of courts of referees shall be determined by regulations made by the Minister.

(5) A court of referees shall record their decisions in writing and shall include in the record of every decision a statement of their findings on questions of fact material to the decision.

(6) The Minister may pay such remuneration to the chairman and other members of a court of referees, and such travelling and other allowances (including, subject as hereinafter provided, compensation for loss of remunerative time) to any such chairman or members, and such other expenses in connection with any such court, as the Minister, with the consent of the Treasury, may determine :

Provided that compensation for loss of time shall not be paid to any person in respect of any time during which he is in receipt of remuneration under this subsection.

42.—(1) For the purposes of this Act officers, in this Act referred to as “ insurance officers ”, shall be appointed by the Minister (subject to the consent of the Treasury as to number) to act for such areas as the Minister directs.

Appoint-
ment of
insurance
officers.

(2) There shall be paid to insurance officers out of moneys provided by Parliament such salaries or remuneration as the Treasury may determine.

43.—(1) All claims for benefit shall be submitted forthwith for examination to one of the insurance officers.

Determina-
tion of
claims by
insurance
officers and
courts of
referees.

(2) The insurance officer shall forthwith take into consideration any claim submitted to him for examination under this section, and if in any case the insurance officer to whom a claim has been submitted is of opinion that the claim ought to be allowed, he may himself allow the claim.

(3) If the insurance officer is not satisfied that a claim ought to be allowed, he may either refer the claim (so far as practicable within fourteen days from the date

PART III.
—cont.

on which the claim was submitted to him for examination) to the court of referees for their decision or, subject to the provisions of this section, himself disallow the claim.

(4) The insurance officer shall not himself disallow a claim on any of the following grounds, namely,—

- (a) that the third statutory condition is not fulfilled;
- (b) that the claimant is disqualified by reason of the provisions of section twenty-seven or section twenty-eight of this Act;
- (c) that the claimant does not fulfil one or more of the additional conditions or terms with respect to the receipt of benefit imposed by orders made under section fifty-five of this Act, or is subject to restrictions on the amount or period of benefit imposed by such orders.

(5) The insurance officer shall not himself disallow a claim on the ground that the fourth statutory condition is not fulfilled, except in cases where that condition is not fulfilled only by reason of a person under the age of eighteen years having been required to discontinue for not more than one day his attendance at an authorised course in consequence of his misbehaviour while attending thereat.

(6) Where a claim is disallowed by the insurance officer, the claimant may at any time within twenty-one days from the date on which the decision of the insurance officer is communicated to him, or within such further time as the Minister may in any particular case for special reasons allow, appeal in the prescribed manner to the court of referees.

Appeal to
umpire from
court of
referees.

44.—(1) Subject as hereinafter provided, an appeal shall lie to the umpire from any decision of the court of referees as follows :—

- (a) at the instance of an insurance officer, in any case;
- (b) at the instance of an association of employed persons of which the claimant was a member on the last date on which he was employed before the claim subject to the appeal was made and has continued to be a member until the date when the appeal is made, in any case;

(c) at the instance of the claimant—

PART III.
—*cont.*

(i) without leave in any case in which the decision of the court of referees is not unanimous; and

(ii) with the leave of the chairman of the court of referees in any other case.

(2) In any case in which a decision of a court of referees disallowing a claim is not unanimous, notice in writing of the fact shall be given by the court to the claimant within three days of the decision and an appeal under this section must be brought within six months of the date of the decision of the court of referees or such longer period as the umpire may in any case for special reasons allow.

(3) Where leave to appeal from a court of referees is not granted by the chairman when the decision of that court is given, an application for such leave may be made by the claimant in such form and within such time after the date of the decision as may be prescribed by regulations made by the Minister.

(4) An application for leave to appeal under this section shall be granted by the chairman if it appears to him that there is a principle of importance involved in the case or any other special circumstance by reason of which leave to appeal ought to be given.

(5) Where the chairman of a court of referees grants leave to appeal under this section, the chairman shall record in writing a statement of the grounds on which leave to appeal is granted.

(6) The decision of the umpire on any appeal from a court of referees shall be final.

45. In the last two foregoing sections references to claims for benefit shall be construed as including references to questions arising in connection with such claims and references to allowing or disallowing a claim shall be construed as including references to determining a question in favour of or adversely to a claimant :

Determina-
tion of
questions.

Provided that—

(a) if any question arises as to whether a person was or was not employed in any excepted employment during any period falling within

PART III.
—*cont.*

the period of two years mentioned in the first statutory condition, that question shall be decided by the Minister subject to the provisions of section eighty-four of this Act; and

- (b) an insurance officer shall refer to the court of referees any question whether a claimant is liable to have deductions made under any of the provisions of this Act from any benefit to which he is, or may become, entitled.

Power to
revise
decisions.

46. Nothing in the last three foregoing sections shall be construed as preventing an insurance officer, a court of referees or the umpire, on new facts being brought to his or their knowledge, from revising a decision given in any particular case, but where any such revision is made, the revised decision shall have effect as if it had been an original decision, and the said sections shall apply accordingly.

Expenses
of persons
attending
before
referees or
umpire.

47. In any case where—

- (a) a person is required to attend before a court of referees; or
(b) on an appeal to the umpire from a decision of a court of referees a person affected by the decision is requested by the umpire to attend before him on the consideration of the appeal and so attends;

that person shall be paid out of moneys provided by Parliament such travelling and other allowances, including compensation for loss of remunerative time, as the Minister with the sanction of the Treasury may determine.

General
provisions
as to pro-
cedure.

48.—(1) The Minister may by regulations—

- (a) prescribe the evidence to be required as to the fulfilment of the conditions and the absence of the disqualifications for receiving or continuing to receive benefit, and for that purpose require the attendance of insured contributors at such offices or places and at such times as may be required, and require employers to answer inquiries relating to any matters on which the fulfilment of the conditions or the absence of the disqualifications depends; and

- (b) prescribe the manner in which applications for benefit may be made and the procedure to be followed on the consideration and examination of claims and questions by the umpire, courts of referees and insurance officers; and
- (c) prescribe the mode in which any question may be raised as to the continuance of benefit in the case of a person in receipt of benefit; and
- (d) enable any insured contributor in whose case good cause is shown for delay in making a claim for benefit or in proving any matter on such a claim, to be treated for the purposes of such provisions of this Act as may be specified in the regulations as if the claim had been made or the matter proved on such earlier date as may be determined in accordance with the regulations.

PART III.
—cont.

(2) The Arbitration Act, 1889, and the Arbitration Act, 1934, shall not apply to proceedings before the umpire, courts of referees or insurance officers, except so far as they may be applied by regulations made by the Minister.

52 & 53
Vict. c. 49.
24 & 25
Geo. 5. c. 14.

49.—(1) Where a court of referees allow a claim for benefit or determine a question arising in connection with such a claim in favour of the claimant, benefit shall be payable in accordance with the decision of the court, notwithstanding that an appeal to the umpire is pending, except in a case where an appeal has been brought (within twenty-one days from the date on which the decision of the court was given) on the ground that the claimant ought to be disqualified by reason of the provisions of section twenty-six of this Act.

Payment of
benefit
pending
determina-
tion of
claim or
question.

(2) If, in any case where a claim for benefit is made by a person in respect of a benefit period immediately following a benefit period in respect of any day of which he was entitled to or received benefit, a question is raised whether the claimant has not ceased to be entitled to receive benefit by reason of the provisions of section twenty-eight of this Act, the claimant shall, unless and until it is decided by the court of referees that the claim should not be allowed, and if he is otherwise entitled to benefit, be treated as being entitled to receive benefit, and benefit shall be payable accordingly.

PART III.
—*cont.*

(3) In the last foregoing subsection the expression “benefit period” means the period of six working days in a week in respect of which benefit is payable.

(4) Any benefit paid in pursuance of the foregoing provisions of this section shall be treated, notwithstanding that the final determination of the claim or question is adverse to the claimant, as having been duly paid and shall not be recoverable from the claimant under the provisions of this Act or otherwise.

(5) Subject to the provisions of this section, the Minister may make regulations with respect to the payment of benefit during any period intervening between any application for the determination of a claim for benefit or any question arising in connection with such a claim and the final determination of the claim or question.

Miscellaneous Provisions as to Benefit.

Payment of
benefit
through
Post Office.

50. Regulations made by the Minister under this Act may, with the concurrence of the Postmaster-General, provide for the payment of benefit through the Post Office and for enabling claimants for benefit to make their claims through the Post Office.

Repayment
of benefit
improperly
received.

51.—(1) If it is found at any time that any person, by reason of the non-disclosure or misrepresentation by him of a material fact (whether the non-disclosure or the misrepresentation was or was not fraudulent) has received any sum by way of benefit while the statutory conditions or any other conditions for the receipt of benefit imposed by or under this Act were not fulfilled in his case, or while he was disqualified for receiving benefit, he shall be liable to repay the sum so received by him to the Unemployment Fund or, in a case where that sum was received from an education authority acting under the powers conferred on it by section eighty-one of this Act, to the education authority.

(2) Where any person is liable to repay to the Unemployment Fund, or to an education authority, any sum received by him by way of benefit, that sum may, unless that person shows that the sum was received by him in good faith and without knowledge that he was not entitled thereto, be recovered without prejudice to any other remedy by means of deductions from any benefit to which that person thereafter becomes entitled.

52. Where, under arrangements made by the Minister with the consent of the Treasury for the purpose of dealing with any emergency, payments have been made to any persons by way of benefit without due proof of the fulfilment of any one or more of the statutory conditions or otherwise than in accordance with the requirements of this Act, the payments so made shall for the purposes of the provisions of this Act be deemed to be payments of benefit duly made, but without prejudice to the provisions of subsection (1) of the last foregoing section of this Act.

PART III.

—cont.

Payment
of benefit
during em-
ergencies.

53. Subject to the provisions of this Act, every assignment of, or charge on, and every agreement to assign or charge, any of the benefits conferred by this Act shall be void, and, on the bankruptcy of any person entitled to any such benefit, the benefit shall not pass to any trustee or other person acting on behalf of his creditors.

Benefit to
be in-
alienable.

54.—(1) In determining whether outdoor relief shall or shall not be granted to a person in receipt of or entitled to receive benefit (including benefit under a special scheme), the authority having power to grant the relief shall take into account the amount of the benefit.

Benefit and
outdoor
relief or
unemploy-
ment
allowances.

(2) In any case where an authority has granted outdoor relief to or on account of, or the Unemployment Assistance Board has under the Unemployment Act, 1934, granted an allowance to, a person who was not in receipt of benefit, or was in receipt of less than the full amount of benefit to which he was entitled—

- (a) in excess of the amount which would have been granted if that person had been in receipt of benefit or had been in receipt of the full amount of benefit to which he was entitled; or
- (b) in excess of the amount which would have been granted if an insured contributor had been in receipt of an increase of benefit in respect of that person;

then, if a claim by that person for benefit, or for the full amount of benefit to which he was entitled, or a claim in respect of that person for an increase of benefit, for any part of the period in respect of which relief, or an

★
PART III.
—cont.

allowance, as the case may be, has been so granted, is subsequently allowed, the Minister may treat the benefit allowed to that person, or the increase of benefit allowed in respect of that person, as the case may be, as reduced by a sum not exceeding such an amount as the authority or the Board, as the case may be, certifies to have been so paid in excess for the period for which the benefit or increase of benefit was allowed, and may pay to the authority or to the Board, as the case may be, the sum by which the benefit or increase of benefit is treated as having been reduced as aforesaid :

Provided that the total charge on the Unemployment Fund shall not be greater than the amount of the benefit or increase of benefit allowed.

Removal of Anomalies as to Benefit.

Orders
with respect
to benefit
in case of
special
classes of
persons.

55.—(1) For the purpose of removing anomalies which may arise from time to time in the operation of this Act in connection with the classes of persons hereafter in this section mentioned, the Minister may make orders, in relation to the classes of persons to whom this section applies, imposing such additional conditions and terms with respect to the receipt of benefit and such restrictions on the amount and period of benefit, and making such modifications in the provisions of this Act relating to the determination of claims for benefit, as may appear necessary for the purpose aforesaid.

(2) The classes of persons to whom this section applies are the following :—

- (a) persons who habitually work for less than a full week, and by the practice of the trade in which they are employed nevertheless receive earnings or similar payments of an amount greater than the normal earnings for a full week of persons following the same occupation in the same district;
- (b) persons whose normal employment is employment for portions of the year only in occupations which are of a seasonal nature;
- (c) persons whose normal employment is employment in an occupation in which their services

are not normally required for more than two days in the week or who owing to personal circumstances are not normally employed for more than two days in the week;

- (d) married women who, since marriage or in any prescribed period subsequent to marriage, have had less than the prescribed number of contributions paid in respect of them, but not including a married woman who proves that she has been deserted by, or is permanently separated from, her husband, or that her husband is incapacitated for work and has been so continuously for at least six weeks.

(3) Orders made under this section in relation to persons of the class specified in paragraph (a) of the last foregoing subsection shall not operate so as to reduce the amount of benefit otherwise payable to any person in respect of any week by more than the amount by which the aggregate of the earnings or similar payments received by him in that week and of the benefit aforesaid exceeds the normal earnings for a full week of persons following the same occupation in the same district.

(4) Orders made in pursuance of this section may apply either generally to all the persons specified in subsection (2) of this section or to any class of those persons or to any portion of such a class, or with respect to them or any of them, in any specified area.

(5) In the case of a person who, immediately before the date on which any order made in pursuance of this section comes into operation, satisfied the requirements for the receipt of benefit under the law in force immediately before the said date, benefit may, during such period as may be necessary for the examination of the qualifications of that person for the receipt of benefit under the said order, but not in any case after the expiration of three months from the said date, be paid to him as if the order had not been made.

(6) Before any order is made under this section, a draft thereof shall be laid before Parliament and no such order shall have effect unless each House has resolved that the draft thereof be approved.

PART III.
—cont.

(7) Before laying before Parliament the draft of any order proposed to be made under this section, the Minister shall submit the draft to the Unemployment Insurance Statutory Committee and the Committee shall forthwith consider the draft and report thereon to the Minister, and the Minister shall consider the report of the Committee and may then lay the draft before Parliament either without amendments or with such amendments as he thinks fit.

(8) Whenever the draft of any order is laid before Parliament in pursuance of this section, there shall be laid together therewith the report of the Committee thereon and a statement by the Minister showing what amendments, if any, have been made since the report of the Committee and what effect, if any, has been given to any recommendations of the Committee, and, if effect has not been given to any recommendation, giving reasons for not adopting it.

(9) In this section the expression “prescribed” means prescribed by an order made under this section.

PART IV.

ADMINISTRATION AND FINANCE.

Unemployment Insurance Statutory Committee.

Constitution
of Com-
mittee.

56.—(1) There shall be constituted a committee to be called “the Unemployment Insurance Statutory Committee” to give advice and assistance to the Minister in connection with the discharge of his functions under this Act and to perform the duties specified in this Act.

(2) The Committee shall consist of a chairman and not less than four nor more than six other members. At least one member of the Committee shall be a woman.

(3) The chairman and other members shall be appointed by the Minister and shall hold office for a period which, in the cases of each of the members first appointed, and of any member appointed to fill a casual vacancy, shall be of such duration not exceeding five years as may be determined by the Minister, and in the case of all other members shall be a period of five years:

Provided that the chairman or any member may by notice in writing to the Minister resign office at any time, and shall be eligible for reappointment from time to time after his resignation or after the expiration of his term of office.

(4) Of the said members, other than the chairman, there shall be appointed, one after consultation with organisations representative of employers, one after consultation with organisations representative of workers, and one after consultation with the Minister of Labour for Northern Ireland.

(5) No member of the Committee shall be capable of being elected to, or of sitting in, the House of Commons.

(6) If a member becomes, in the opinion of the Minister, unfit to continue in office or incapable of performing his duties, the Minister shall forthwith declare his office to be vacant, and shall notify the fact in such manner as he thinks fit, and thereupon the office shall become vacant.

(7) The Minister shall appoint a secretary to the Committee and may appoint such other officers and such servants to the Committee, and there shall be paid to them such salaries and allowances, as the Minister may with the consent of the Treasury determine.

(8) The expenses of the Committee to such an amount as may be approved by the Treasury (including such salaries or other remuneration paid to all or any of the members as the Minister with the consent of the Treasury may determine and including salaries and allowances payable under the last foregoing subsection) shall be paid by the Minister.

(9) There may be paid as part of the expenses of the Committee to persons attending meetings at the request of the Committee such travelling and other allowances (including compensation for loss of remunerative time) as the Minister may, with the consent of the Treasury, determine.

(10) The Committee may act notwithstanding any vacancy in the number of the Committee.

(11) The Committee may make rules for regulating the procedure (including the quorum) of the Committee.

PART IV.
—cont.

General
powers and
duties of
Minister as
respects
Committee.

57.—(1) The Minister may from time to time refer to the Unemployment Insurance Statutory Committee for consideration and advice such questions relating to the operation of this Act as he thinks fit (including questions as to the advisability of amending this Act).

(2) The Minister shall furnish the Committee with such information as they may reasonably require for the proper discharge of their functions under this Act.

Financial Provisions.

Establish-
ment of
Unemploy-
ment Fund.

58.—(1) For the purposes of this Act, there shall be established, under the control and management of the Minister, a fund called “the Unemployment Fund,” into which shall be paid all contributions payable under this Act by employers and employed persons and out of moneys provided by Parliament, and out of which shall be paid all claims for benefit and any other payments which under this Act are payable out of the fund.

(2) The accounts of the Unemployment Fund shall be examined by the Comptroller and Auditor-General and shall, together with his report thereon, be laid before Parliament.

(3) Any moneys forming part of the Unemployment Fund may from time to time be paid over to the National Debt Commissioners and by them invested, in accordance with regulations made by the Treasury, in any securities which are for the time being authorised by Parliament as investments for savings banks funds.

(4) The National Debt Commissioners shall present to Parliament annually an account of the securities in which moneys forming part of the Unemployment Fund are for the time being invested.

Duties of
Committee
as respects
Unemploy-
ment Fund.

59.—(1) The Unemployment Insurance Statutory Committee shall, not later than the end of February in every year, make a report to the Minister on the financial condition of the Unemployment Fund on the thirty-first day of December last preceding, and shall also make a report to the Minister on the financial condition of the fund whenever they consider that the fund is or is likely to become, and is likely to continue to be, insufficient to discharge its liabilities, and may make a

report on the financial condition of the fund at such other times as they think fit.

PART IV.
—*cont.*

(2) If the Committee at any time report that the Unemployment Fund is or is likely to become, and is likely to continue to be, insufficient to discharge its liabilities, or is and is likely to continue to be more than reasonably sufficient to discharge its liabilities, the report shall contain—

- (a) recommendations for the amendment, either generally or in relation to special classes of insured contributors, of the provisions of this Act referred to in the Fifth Schedule to this Act or of the provisions of any previous order made under this section, being such amendments as in the opinion of the Committee are required in order to make the fund, as the case may be, sufficient or no more than reasonably sufficient to discharge its liabilities; and
- (b) an estimate of the effect which the amendments recommended will have on the financial condition of the fund;

and, where the Committee report that the fund is and is likely to continue to be more than reasonably sufficient to discharge its liabilities, the report may contain recommendations for the application of any sum towards the discharge of the liabilities mentioned in subsection (2) of the next following section of this Act.

(3) The Committee shall give such notice as they consider sufficient of their intention to make a report under this section and shall take into consideration any representations which may be made to them with respect thereto.

(4) Within the period of two months after the receipt by the Minister of any report under this section or, if Parliament is not sitting, at the expiration of that period, then as soon after the expiration thereof as Parliament sits, the Minister shall lay the report before Parliament, and in a case where the report contains recommendations for the amendment of this Act or of any previous order made under this section, shall after consultation with the Treasury lay before Parliament—

- (a) the draft of an order making such amendments as are duly recommended by the report, or, if

PART IV.
—cont.

and so far as any amendment so recommended is not adopted by the Minister, making such amendments (being amendments which the Committee had power to recommend) as will in his opinion have substantially the same effect on the financial condition of the Unemployment Fund as that estimated by the report as being the effect of the amendments recommended; and

- (b) if and in so far as the amendments proposed by the draft order differ from the amendments recommended by the report, a statement of the reasons for the difference.

(5) If each House resolves that the draft of an order laid before it under this section be approved, the Minister shall make an order in the terms of the draft to take effect on such date as may be specified in the order, and as from that date the provisions of this Act and of any such previous order as aforesaid shall have effect subject to the provisions of the order.

Treasury
advances to
Unemploy-
ment Fund.
11 & 12
Geo. 5. c. 1.

60.—(1) All advances made by the Treasury to the Unemployment Fund before the first day of July nineteen hundred and thirty-four under section five of the Unemployment Insurance Act, 1921, as amended by any subsequent enactment, together with interest thereon, shall be charged on and payable out of that fund.

(2) Subject as hereinafter provided, the liability imposed on the Unemployment Fund by this section in respect of the said advances and interest, and the liability incurred by the Treasury to the National Debt Commissioners in respect of the provision of money for the purpose of the said advances, shall be discharged by the payment to the National Debt Commissioners of half-yearly instalments which—

- (a) (except for the last thereof which shall be for the balance of the advances and interest then outstanding) shall be of two million five hundred thousand pounds each;
- (b) shall be paid on the thirty-first day of March and the thirtieth day of September in each year; and
- (c) shall cease to be payable when the National Debt Commissioners certify to the Minister that the

amount of the advances and interest outstanding immediately before the first day of July nineteen hundred and thirty-four, together with interest thereon at the appropriate rate, has been discharged :

PART IV.
—cont.

Provided that nothing in this subsection shall be construed as preventing the application, on the recommendation of the Unemployment Insurance Statutory Committee, of sums out of the Unemployment Fund towards the discharge of the said liabilities in addition to the instalments therein mentioned.

In this subsection the expression “ the appropriate rate ” means, as respects each advance, the rate of interest fixed by the Treasury before the first day of July nineteen hundred and thirty-four for the period for which it was fixed, and after that period the rate of three and one-eighth per cent. per annum.

(3) Subject to the provisions of this subsection, the instalments aforesaid shall be paid out of the Unemployment Fund :

Provided that, where the moneys in the Unemployment Fund are insufficient to pay any instalment falling due or any part thereof, the Treasury shall pay to the National Debt Commissioners out of the Consolidated Fund or the growing produce thereof the sum required to make good the deficiency, and an amount equal to that sum shall be treated as having been temporarily advanced to the Unemployment Fund.

(4) The Treasury may under this subsection at any time temporarily advance to the Unemployment Fund out of the Consolidated Fund or the growing produce thereof such sums as may be required from time to time for the purpose of making any payments properly falling to be made out of the Unemployment Fund other than instalments payable under the foregoing provisions of this section and the repayment of any sums treated under the last foregoing subsection as having been temporarily advanced to the fund.

(5) If at any time it appears to the Minister, after consultation with the Treasury, that the Unemployment Fund is, or will shortly become, insufficient to discharge its liabilities, including the repayment of any advances made under the last two foregoing subsections within

PART IV.
—*cont.*

the time limited by this section in the case of such advances, there shall be advanced to the fund out of moneys provided by Parliament such sums as appear to the Treasury to be required to enable the fund to discharge its liabilities.

(6) Any sums advanced or treated as having been temporarily advanced under this section, together with interest thereon at such rate as may be fixed by the Treasury, shall be charged on the Unemployment Fund and shall be repaid out of that fund to the Exchequer in such manner as the Treasury may direct, and shall be so repaid—

- (a) in the case of a payment treated as having been advanced under subsection (3) of this section, within six months from the date of the payment to the National Debt Commissioners;
- (b) in the case of an advance under subsection (4) of this section, before the end of the financial year in which the advance was made;
- (c) in the case of an advance under subsection (5) of this section, as to one-third thereof not later than the end of the first financial year next following the financial year in which the advance was made, and as to two-thirds thereof not later than the end of the second financial year so next following.

(7) Whenever any advance is made to the Unemployment Fund under this section, the Minister shall forthwith report the fact to the Unemployment Insurance Statutory Committee.

Expenses of
Minister.

61. Any expenses incurred by the Minister in carrying this Act into effect, to such amount as may be sanctioned by the Treasury, shall be defrayed out of moneys provided by Parliament.

Contri-
bution out
of Unem-
ployment
Fund to
expenses of
Government
Depart-
ments.

62.—(1) There shall in each year be paid to the Treasury out of the Unemployment Fund at such times and in such manner as the Treasury may direct such sum as the Minister may estimate in accordance with directions given by the Treasury to be the amount of any expenses of any Government Department attributable to carrying this Act into effect :

Provided that the sum paid under this subsection in any year shall not exceed one-eighth of the receipts paid into the Unemployment Fund on account of income, after deducting, so long as regulations made under this Act provide for the payment of contributions by means of unemployment insurance stamps, any sums which have been refunded on account of any such stamps or on account of contributions paid (whether by stamps or otherwise) in respect of a person under the erroneous belief that the contributions were payable in respect of him under the general provisions of this Act.

PART IV.
—*cont.*

(2) In estimating the expenses of Government Departments for the purposes of subsection (1) of this section there shall be included—

- (a) such amount as in the opinion of the Treasury approximately represents the amount of the accruing liability in respect of any superannuation allowances, lump sums or gratuities to which any officers, inspectors or servants employed for the purposes of this Act or the legal personal representatives of any such persons will become entitled under the Superannuation Acts, 1834 to 1919, in respect of that employment;
- (b) any capital expenditure incurred for the purposes of this Act;
- (c) in respect of the use of any premises belonging to the Crown and used for the purposes of this Act, being premises in respect of which no rent is payable, an amount determined by the Treasury with the consent of the Minister, regard being had to the rental value of the premises and to any capital expenditure incurred as aforesaid which has been charged to the Unemployment Fund:

Provided that if, in any case where the amount of any such expenditure as is mentioned in paragraph (b) of this subsection has been charged to the Unemployment Fund, the premises in respect of which the expenditure was incurred are sold or have ceased to be used for the purposes of this Act, there shall be deducted from the amount thereafter chargeable to the Unemployment Fund under the said subsection (1) such sum as may be determined by the Treasury, with the consent of the

PART IV. Minister, to represent the whole or the appropriate
—*cont.* proportion of the then value of the premises.

General Administrative Provisions.

Exercise of
powers of
Minister.

63. Anything required or authorised under this Act to be done by, to or before the Minister may be done by, to or before a secretary to the Ministry of Labour or by, to or before any assistant secretary to the Ministry or other person authorised in that behalf by the Minister.

Appoint-
ment and
remunera-
tion of
officers,
inspectors
and
servants.

64.—(1) For the purpose of this Act, the Minister may appoint such officers, inspectors, and servants as the Minister may, with the sanction of the Treasury, determine.

(2) There shall be paid out of moneys provided by Parliament to officers, inspectors and servants so appointed such salaries or remuneration as the Treasury may determine.

Powers of
inspectors.

65.—(1) An inspector appointed under this Act shall, for the purposes of the execution of this Act, have power to do all or any of the following things, namely :—

- (a) to enter at all reasonable times any premises or place, other than a private dwelling-house not being a workshop, where he has reasonable grounds for supposing that any employed persons are employed;
- (b) to make such examination and inquiry as may be necessary for ascertaining whether the provisions of this Act are complied with in any such premises or place;
- (c) to examine, either alone or in the presence of any other person, as he thinks fit, with respect to any matters under this Act, every person, whom he finds in any such premises or place, or whom he has reasonable cause to believe to be or to have been an employed person, and to require every such person to be so examined, and to sign a declaration of the truth of the matters in respect of which he is so examined;
- (d) to exercise such other powers as may be necessary for carrying this Act into effect.

(2) The occupier of any such premises or place and any other person employing any employed person,

and the servants and agents of any such occupier or other person, and any employed person shall furnish to any inspector all such information and shall produce for inspection all such registers, books, cards, wages sheets, records of wages, and other documents as the inspector may reasonably require.

PART IV.
—cont.

(3) If any person—

- (a) wilfully delays or obstructs an inspector in the exercise of any power under this section; or
- (b) fails to give such information or to produce such documents as are mentioned in the last foregoing subsection; or
- (c) conceals or attempts to conceal any person or prevents or attempts to prevent any person from appearing before or being examined by an inspector;

he shall be liable on summary conviction to a fine not exceeding five pounds :

Provided that no one shall be required under this section to answer any question or to give any evidence tending to incriminate himself.

(4) Every inspector shall be furnished with the prescribed certificate of his appointment and on applying for admission to any premises or place for the purposes of this Act shall, if so required, produce the said certificate to the occupier.

66. Where any such premises or place as are mentioned in the last foregoing section are liable to be inspected by inspectors or other officers employed by, or are under the control of, some other Government department, the Minister may make arrangements with that other Government department for any of the powers and duties of inspectors under that section being carried out by inspectors or other officers of that other Government department, and, where such an arrangement is made, such inspectors and officers shall have all the powers of an inspector under that section.

Arrange-
ments for
inspection
by other
depart-
ments.

67. Regulations made by the Minister under this Act may provide for the reference to central or local committees representing employers and employed persons, for consideration and advice, of questions bearing upon the administration of this Act.

Advice of
committees
on admini-
stration of
Act.

PART V.

ARRANGEMENTS AND SCHEMES.

Arrangements.

Power to
make
special
arrange-
ments with
certain asso-
ciations.

68.—(1) Subject to the provisions of this Part of this Act, the Minister may, on the application of any association to which this section applies, make an arrangement (in this Act referred to as a "special arrangement") with the association whereby in lieu of benefit being paid under this Act to persons who prove that they are members of the association, there shall be repaid periodically to the association out of the Unemployment Fund such sum as appears to be, as nearly as may be, equivalent to the aggregate amount which those persons would have been entitled to receive during that period by way of benefit under this Act if no such arrangement had been made.

(2) This section applies to the following associations, namely, a society approved under the National Health Insurance Acts, 1924 to 1932, or body ancillary thereto, or any other association of employed persons, being a society, body or association the rules of which provide for payments to its members or any class thereof while unemployed, but not being either an industrial assurance company or collecting society, or a separate section of any such company or society, or a society organised by any such company or society solely or jointly with other bodies.

(3) The fact that persons other than employed persons can be members of an association shall not prevent the association being treated as an association to which this section applies, if the association is substantially an association for the benefit of employed persons.

Provision
for enabling
associations
to make
special
arrange-
ments.

69.—(1) It shall be lawful for any association to make any such amendments in the instrument governing its constitution as may be necessary for the purpose of enabling the association—

- (a) to become an association with which the Minister may make a special arrangement; or
- (b) to include any class of its members within the scope of such an arrangement.

•
PART V.
—cont.

(2) If the instrument regulating the constitution of the association contains provisions requiring any interval of time to elapse before any action can be taken or any amendment of the instrument can take effect, those provisions shall not apply to action taken for the purposes aforesaid.

(3) The powers conferred by this section on an association may, notwithstanding anything in the instrument governing the constitution of the association, be exercised by the council or other governing body of the association.

(4) In this section the expression "instrument" includes any Act, memorandum, articles of association, trust deed or rules.

70.—(1) The Minister shall not make or continue a special arrangement with an association unless he is satisfied that under the rules of the association—

Conditions
of making
special
arrange-
ments.

(a) the payments thereby authorised represent a provision for unemployment which exceeds the provision represented by benefit at the rate for the time being payable by at least—

(i) three shillings per week in the case of men who have attained the age of twenty-one years;

(ii) two shillings and six pence per week in the case of women who have attained the said age;

(iii) one shilling and six pence per week in the case of young men and boys who have not attained the said age;

(iv) one shilling and three pence per week in the case of young women and girls who have not attained the said age; and

(b) the aggregate amount of the excess payable in a year is at least—

(i) seventy-five shillings in the case of men who have attained the said age;

(ii) sixty shillings in the case of women who have attained the said age;

PART V.
—cont.

(iii) thirty-seven shillings and six pence in the case of young men and boys who have not attained the said age;

(iv) thirty shillings in the case of young women and girls who have not attained the said age; and

(c) the excess is payable in at least ten weeks in the year.

(2) The Minister shall not make or continue a special arrangement with an association unless the association has such a system of ascertaining the wages and conditions prevailing in every insurable employment in which its members are employed and of obtaining from employers notification of vacancies for employment and giving notice thereof to its members when unemployed, as is, in the opinion of the Minister, reasonably effective for securing that unemployed persons competent to undertake the particular class of work required shall, with all practicable speed, be brought into communication with employers having vacancies to fill.

Provisions
where
special
arrange-
ment in
force.

71.—(1) The Minister may, with the consent of the Treasury and subject to such conditions and otherwise as the Minister may prescribe, pay to any association with which a special arrangement is in force, by way of contribution towards the administrative expenses of the association in connection with the arrangement, such sum (not exceeding the amount hereafter specified) as he thinks fit:

Provided that the sum so paid shall not exceed in any year an amount calculated at the rate of one shilling for each week of the aggregate number of weeks of unemployment in respect of which a repayment is made to the association under the arrangement.

(2) The council or other governing body of any association which has made a special arrangement shall be entitled to treat the contributions due from any of its members to the Unemployment Fund, or any part thereof, as if such contributions formed part of the subscriptions payable by those members to the association,

and, notwithstanding anything in the rules of the association to the contrary, may reduce the rates of subscription of those members accordingly.

PART V.
—cont.

(3) Where any sum is paid to a person under a special arrangement, so much thereof as represents the amount of benefit which, but for the arrangement, would have been paid to him shall be deemed for the purpose of this Act to have been paid by way of benefit.

(4) The Minister may make regulations for giving effect to the provisions of this Part of this Act relating to special arrangements and for referring to insurance officers, courts of referees or the umpire appointed under this Act any question which may arise under those provisions.

(5) Where, in consequence of a decision of an insurance officer, court of referees or umpire, an association has paid to one of its members any sum by way of provision for unemployment and the decision is subsequently revised, then—

- (a) so much of that sum as represented the amount of benefit which, but for the arrangement, would have been payable to that person may, unless that person shows that the sum was received by him in good faith and without knowledge that he was not entitled thereto, be recovered, without prejudice to any other remedy, by means of deductions from any benefit or from any payment from the association to which that person thereafter becomes entitled; and
- (b) where the decision is revised on new facts being brought to the knowledge of the insurance officer, court of referees or umpire, repayment of that sum shall, notwithstanding the revision, be made to the association out of the Unemployment Fund, if it is shown that no-one concerned with the case on behalf of the association could reasonably have been expected to ascertain the facts on which the decision was revised, and that recovery of the sum has not been practicable.

PART V.

—*cont.*Supple-
mentary
schemes.*Schemes.*

72.—(1) A scheme may be submitted to the Minister by any of the bodies mentioned in subsection (2) of this section—

- (a) for insuring insured contributors in any industry against unemployment during periods of unemployment in respect of which they may not be entitled to benefit, or against partial unemployment; or
- (b) for paying to any such insured contributors while they are in receipt of benefit an additional sum in respect of unemployment;

and any scheme so submitted is referred to in this Act as a “supplementary scheme.”

(2) A supplementary scheme may be submitted by—

- (a) a joint industrial council; or
- (b) an association of employers and employees; or
- (c) any organisations which appear to the Minister to represent a majority of such of the employers in an industry and of such of the employees in that industry as are organised.

(3) The Minister may by special order approve, whether with or without amendment, any supplementary scheme, if he is satisfied that it is expedient that the scheme should come into operation:

Provided that the Minister, before approving any scheme submitted by organisations mentioned in paragraph (c) of the last foregoing subsection, shall take steps to ascertain so far as practicable, and shall take into consideration, the views of other employers and employees in the industry.

(4) Subject to the provisions of this section, a supplementary scheme may—

- (a) apply for the purposes of the scheme with or without modifications any of the provisions of this Act;
- (b) make such provision for the constitution of a body to be charged with the administration of

PART V.
—*cont.*

the scheme and with respect to the supervision of the administration of the scheme and accounts as the Minister considers to be necessary for the purpose of giving effect to the scheme;

- (c) provide for the participation of the Minister in the administration of the scheme to such an extent and for such purposes as may be therein specified;
- (d) provide for the defraying, out of any funds which may be available for the purposes of the scheme, of such fees or other charges as may be determined by the Minister, with the concurrence of the Treasury, in respect of the participation of the Minister in the administration of the scheme as aforesaid;
- (e) contain such other provisions as the Minister considers to be necessary for the purpose of giving effect to the scheme.

(5) No part of the funds required for providing benefits under a supplementary scheme or otherwise in connection therewith shall be derived from moneys provided by Parliament.

(6) The general provisions of this Act shall not, except in so far as they are applied by a supplementary scheme, apply to or have effect in relation to or for the purposes of the scheme.

(7) A supplementary scheme when approved by the Minister shall have effect as if enacted in this Act, and shall continue in force until determined in accordance with the provisions thereof.

(8) The Minister may at any time, if so requested by the joint industrial council, association of employers and employees or other organisations concerned, by special order vary or amend the provisions of a supplementary scheme.

(9) For the purposes of this section—

- (a) the expression “association of employers and employees” means an association so constituted that the members of the association

PART V.
—*cont.*

who are employers consist of persons employing a substantial majority of the employees in the industry and the members who are employees consist of persons representing a substantial majority of the employees in the industry;

- (b) the expression “industry” means any class or classes of establishments or undertakings, or any class or classes of establishments or undertakings in any area, which the Minister may determine to be an industry for the purposes of this section;
- (c) a person shall be deemed, notwithstanding that he is employed on any day, to be partially unemployed if on that day the employment available for him is not such as to enable him to earn the full rate of wages, and the expression “partial unemployment” shall be construed accordingly.

Special
schemes.

10 & 11

Geo. 5. c. 30.

73.—(1) Where a scheme (in this Act referred to as a “special scheme”) approved as respects any industry under section eighteen of the Unemployment Insurance Act, 1920 (as amended by any subsequent enactment) is in force at the commencement of this Act, the employed persons to whom the scheme applies shall not, subject to the provisions of this Act and so long as the scheme remains in force, be liable to be insured under the general provisions of this Act or be entitled to benefit, and the general provisions of this Act shall not, except in so far as they are applied by that scheme, apply to or have effect in relation to or for the purposes of the scheme or the persons insured thereunder:

Provided that the provisions of this Act relating to persons who have attained the age of sixty-five years or to whom the Second Schedule to this Act applies shall have effect for the purposes of a special scheme subject to the following modifications, that is to say, references to liability to be insured and contributions under this Act, and to the Unemployment Fund, shall be respectively construed as references to liability to be insured and to contributions under the special scheme, and to the fund constituted thereunder.

(2) Any such special scheme shall have effect as if enacted in this Act and shall continue in force until determined in accordance with the provisions thereof.

(3) A special scheme may—

- (a) provide for insuring persons to whom the scheme applies against partial unemployment as well as against unemployment;
- (b) apply for the purposes of the scheme whether with or without modification, any of the provisions of this Act;
- (c) contain such other provisions, including provisions with respect to the constitution of the body charged with the administration of the scheme and with respect to the supervision of the administration of the scheme and accounts, and, subject to the consent of the Treasury, with respect to the investment of funds and audit, as the Minister considers to be necessary for the purpose of giving effect to the scheme and to the provisions of this section.

(4) A special scheme shall not apply to any persons other than employed persons.

(5) On the application of the association of employers and employees by which a special scheme was made, the Minister may at any time by order or, in the case of provisions relating to rates of contribution, rates or duration of benefit or the constitution of the body charged with the administration of the scheme, by special order, vary or amend the provisions of the scheme.

(6) For the purpose of securing in the case of a special scheme that like rates of benefit shall be payable to the persons to whom the scheme applies as are for the time being payable under the general provisions of this Act or any amendment thereof, and that the benefits under the scheme shall otherwise be not less favourable than those for the time being provided by the said provisions or any such amendment (but for no other purpose), the Minister may, after consultation with the body charged with the administration of the scheme, notwithstanding anything in the foregoing provisions of

PART V.
—cont.

this section, by order vary or amend the provisions of the scheme and any such order may provide for consequential amendments as to the rates of contribution and otherwise.

(7) Any order, not being a special order, made under subsection (5) of this section for varying or amending the provisions of a scheme shall be laid before both Houses of Parliament in the same manner as regulations made under this Act, and subsection (1) of section one hundred and five of this Act shall apply accordingly.

(8) The Minister may, with the approval of the Treasury, make regulations for determining and regulating the position of persons who at any time pass from the general provisions of this Act to the provisions of a special scheme, or from the provisions of a special scheme to the general provisions of this Act, or from one special scheme to another special scheme, and in particular for providing that a person shall be entitled for such period, and subject to such terms and conditions as may be specified by or in pursuance of the regulations, to receive benefit under this Act, or benefits under a special scheme, after he has ceased to be subject to the general provisions of this Act or to the scheme, as the case may be.

(9) In this section the expressions "association of employers and employees," "industry" and "partial unemployment" have respectively the same meanings as in the last foregoing section of this Act.

Miscellaneous
provisions
as to
schemes.

74.—(1) If any question arises whether a person or class of persons is or is not, or was or was not, a person or class of persons to whom a special or supplementary scheme applies or applied, that question shall be decided by the Minister subject to the provisions of section eighty-four of this Act.

(2) The Minister may make regulations requiring the body charged with the administration of a special or supplementary scheme to furnish at prescribed intervals returns with respect to the state of employment in the industry to which the scheme relates and with respect to such other matters in connection with the scheme as may be prescribed.

PART VI.

EDUCATION AND POWERS OF EDUCATION AUTHORITIES.

75.—(1) Subject to and in accordance with the provisions of this section, the Minister shall, after consultation with the Board of Education and the Scottish Education Department, and with the approval of the Treasury, provide by regulations for crediting with contributions any persons who, after attaining the age at which the period of compulsory elementary instruction ends, have continued to receive whole-time education.

Crediting of
contribu-
tions to
persons
receiving
whole-time
education.

In this subsection the expression "period of compulsory elementary instruction" means the period during which under any enactment for the time being in force, other than local byelaws, parents are under an obligation to cause their children to receive efficient elementary instruction or, in Scotland, to receive efficient education.

(2) Subject as hereinafter provided, the said regulations shall not provide for any such person as aforesaid being credited with contributions until, after attaining the age aforesaid, he has continued to receive whole-time education for a period of twelve months, and the number of contributions with which such a person may under the regulations be credited shall not exceed—

- (a) where the period for which he has so continued is twelve months or more but less than eighteen months, ten contributions;
- (b) where the said period is eighteen months or more but less than twenty-four months, fifteen contributions;
- (c) where the said period is twenty-four months or more, twenty contributions:

Provided that for the purpose of avoiding anomalies, and in particular for the purpose of preventing inequalities between persons who attain the age aforesaid during school holidays, the said regulations may make provision for any person being deemed for the purpose of computing the beginning of any such period as aforesaid to have attained the age aforesaid on such date (not being more than three months before or after the date on which he in fact

PART VI. attains or has attained it) as may be prescribed by the
—cont. regulations.

(3) Without prejudice to the generality of the provisions of subsection (1) of this section, the power of making regulations thereunder shall extend in particular to the following matters :—

- (a) prescribing the types of education, and classes of school, continuance at which shall be reckoned for the purpose of crediting contributions;
- (b) determining to what extent holidays or other periods of interruption shall be disregarded for the purpose of determining whether a person is continuing to receive whole-time education;
- (c) prescribing the procedure as to claims in respect of contributions so to be credited, including the limitations of time within which such claims must be made;
- (d) requiring local authorities, governing bodies or other persons responsible for the management of schools, attendance at which may be reckoned for the purposes of crediting contributions, to supply such particulars as to school attendances as may be prescribed.

(4) Regulations made under this section shall not come into force until the third day of September, nineteen hundred and thirty-five, but as from that date shall apply to persons who, having previously (whether before or after the commencement of this Act) attained the age aforesaid, have continued and are then continuing to receive whole-time education.

(5) For the purpose of determining whether the first statutory condition is fulfilled in the case of any insured contributor :—

- (a) any contributions with which he is credited under regulations made under this section (in this section referred to as “credited contributions”) shall be deemed to have been paid in respect of him at the rate of one contribution for each week over a period ending with the week in which he ceased to receive whole-time education or in which he attained

the age of sixteen years, whichever is the earlier; and

PART VI.
—cont.

- (b) for the purposes of subsection (2) of section twenty-two of this Act, he shall be deemed to have been bona fide employed during the said period; and
- (c) no contributions actually paid in respect of him for weeks included in the said period shall be taken into account; and
- (d) contributions actually paid in respect of him for weeks before the beginning of the said period shall be taken into account only if the number of contributions actually paid in respect of him before he ceased to receive whole-time education or before he attained the age of sixteen years, as the case may be, is in excess of the number of credited contributions, and in that case only to the extent of the excess.

(6) No account shall be taken of credited contributions—

- (a) for the purpose of determining whether an insured contributor is qualified under subsection (2) of section thirty-one of this Act for additional days, or the maximum number of such days; or
- (b) for the purpose of calculating the amount of the sums to be contributed out of moneys provided by Parliament under section twenty-one of this Act.

76.—(1) Every education authority shall, as soon as may be after the commencement of this Act, unless it has already complied with the provisions of subsection (1) of section thirteen of the Unemployment Act, 1934, submit to the Minister proposals for the provision of such courses of instruction as may be necessary for persons in its area between the minimum age for entry into insurance and the age of eighteen years who are capable of and available for work but have no work or only part-time or intermittent work.

Provision of
courses of
instruction
by education
authorities.
24 & 25
Geo. 5. c. 29.

(2) If after the commencement of this Act the Minister approves with or without modifications any

PART VI.
—*cont.*

proposals made by an education authority under the last foregoing subsection or any proposals made by an education authority before the commencement of this Act under subsection (1) of the said section thirteen, or if before the commencement of this Act the Minister has approved under subsection (1) of the said section thirteen any proposals made under that subsection, the authority shall provide courses in accordance therewith :

Provided that the Minister shall not approve any proposals submitted to him by an education authority in England or Scotland unless they are in accord with schemes made by him with the consent of the Treasury for England and Scotland respectively, after consultation, in the case of the scheme for England, with the Board of Education and, in the case of the scheme for Scotland, with the Scottish Education Department.

(3) If it is certified by the Minister that, having regard to the number of such persons as aforesaid in the area of any education authority, insufficient provision has been made under the foregoing provisions of this section for courses of instruction in or in any part of the area, and that such courses of instruction as are specified in the certificate are necessary in such localities as are specified therein, it shall be the duty of the authority to provide such courses of instruction in those localities within three months from the date of the certificate or such further time as the Minister may allow, and, if the authority fails to do so, the Minister may make such an order as he thinks necessary or proper for the purpose of compelling the authority to fulfil that duty.

(4) Any order made by the Minister under this section may in England be enforced by mandamus.

(5) It is hereby declared that proceedings in Scotland for the enforcement of any order made by the Minister under this section may be taken at the instance of the Minister under section ninety-one of the Court of Session Act, 1868, as amended by any subsequent enactment.

31 & 32 Vict.
c. 100.

Provision of
training
courses by
Minister.

77. The Minister, subject to the approval of the Treasury, may provide training courses for persons who have attained the age of eighteen years and are capable of and available for work but have no work or only part-time or intermittent work.

78.—(1) If any person (whether an insured contributor or not) who is between the minimum age for entry into insurance and the age of eighteen years is capable of and available for work but has no work or only part-time or intermittent work, the Minister may require his attendance in accordance with regulations at any authorised course at which he can reasonably be expected to attend.

PART VI.
—*cont.*

Power to
require
attendance
of persons
under
eighteen at
authorised
courses.

(2) If any person whose attendance at an authorised course has been required by the Minister under this section fails, except by reason of sickness or other unavoidable cause, to attend at that course, then—

(a) in England, proceedings may be taken by or on behalf of the Minister—

(i) in the case of a person who has not attained the age of sixteen years, under section forty-five of the Education Act, 1921, (notwithstanding that he may be over the age at which an order could otherwise be made under that section); or

11 & 12
Geo. 5. c. 51.

(ii) in the case of a person who has attained the age of sixteen years, under section seventy-eight of that Act;

as if the requirement were respectively a school attendance order or a requirement imposed under the said Act for attendance at a continuation school, and as if proceedings could be taken by or on behalf of the Minister under those sections, and the provisions of that Act shall apply accordingly; and

(b) in Scotland—

(i) in the case of a person who has not attained the age of sixteen years, proceedings may be taken by or on behalf of the Minister under section four of the Day Industrial Schools (Scotland) Act, 1893 (notwithstanding that that person may be over the age at which an order could otherwise be made under that section) as if the requirement to attend at the course were an attendance order and as if proceedings could be taken by or on behalf of the Minister under the said section, and the

56 & 57 Vict.
c. 12.

PART VI.
—*cont.*

provisions of the said Act shall apply accordingly, provided that it shall not be competent in any such proceedings to pronounce a sentence of imprisonment; and

8 & 9 Geo. 5.
c. 48.

(ii) in the case of a person who has attained the age of sixteen years, the provisions of subsection (8) of section fifteen of the Education (Scotland) Act, 1918, shall apply as if the requirement to attend at the course were an order by an education authority served upon that person in accordance with that subsection.

(3) For the purposes of the last foregoing subsection and of any such proceedings as are therein mentioned, a person who, by reason of his misbehaviour while attending at any course, has been required to discontinue his attendance thereat for any period shall be deemed to have failed without unavoidable cause to attend at that course.

(4) An education authority shall have power to assist the Minister with respect to the attendance at authorised courses of persons who may be, or have been, required by the Minister under this section to attend thereat, and, for the purpose of the power conferred by this subsection, the expression "education authority" shall include a local education authority for elementary education under the Education Act, 1921:

Provided that legal proceedings for enforcing a requirement of the Minister that any person should attend at an authorised course shall not be taken by an education authority except under subsection (2) of this section on behalf of the Minister.

(5) The regulations made by the Minister under this section may make provision for the establishment of boards of assessors for the purpose of reporting to him as to the advisability of requiring persons to attend at an authorised course.

Expenses of
and in
connection
with
courses.

79.—(1) The Minister, subject to the approval of the Treasury, may defray the cost of authorised courses provided by him and contribute towards the cost of any other authorised courses and may also defray, or contribute towards, the cost of training courses, courses of instruction, or courses of occupation, provided in

pursuance of arrangements made with the Minister by any public authority or other body for persons who are capable of and available for work but have no work or only part-time or intermittent work.

PART VI.
—cont.

(2) The Minister, subject to the approval of the Treasury, may defray or contribute towards the travelling expenses of persons travelling to or from any such course as aforesaid, and may make payments to persons attending at any such authorised course, training course, or course of instruction as aforesaid, not being a course provided only for persons who have not attained the age of eighteen years.

80.—(1) Subject to the provisions of this section the Minister may, with the consent of the Treasury, authorise the payment out of the Unemployment Fund of grants towards expenses incurred by the Minister in respect of the attendance at authorised courses of persons who have not attained the age of eighteen years and of insured contributors in receipt of benefit who have attained that age.

Power to
make grants
out of
Unemploy-
ment Fund
towards
expenses
of attend-
ance at
authorised
courses.

(2) Grants under this section—

- (a) in respect of attendance at authorised courses, being courses of instruction, shall not exceed fifty per cent.; and
- (b) in respect of attendance at authorised courses, being training courses, shall not exceed seventy-five per cent.;

of any amount which may be paid out of moneys provided by Parliament in respect of the attendances in question.

(3) All sums paid out of the Unemployment Fund under this section shall be paid as an appropriation in aid of moneys provided by Parliament for the expenses of the Minister, but the expenses of the Minister so incurred as aforesaid shall not be taken into account in estimating his expenses for the purposes of subsection (1) of section sixty-two of this Act.

81.—(1) An education authority in England shall have power, in accordance with a scheme to be approved by the Minister, to make arrangements for giving to persons under the age of eighteen years assistance with

Miscel-
laneous
powers of
education
authorities.

PART VI.
—*cont.*

respect to the choice of suitable employment by means of the collection and communication of information and the furnishing of advice, and to undertake such additional duties as are specified in the scheme, being duties in connection with—

- (a) the attendance at authorised courses of persons under the age of eighteen years; or
- (b) the administration of benefit claimed by persons under that age; or
- (c) the administration of increase of benefit claimed in respect of dependent children between the ages of fourteen and sixteen years.

(2) Where a scheme under this section is in force—

- (a) there shall out of the Unemployment Fund be repaid to the education authority sums equal to the aggregate amount from time to time paid in benefit by the authority; and
- (b) there shall from time to time be paid out of moneys provided by Parliament to the education authority in respect of administrative expenses such sums as may be determined in accordance with regulations made by the Minister with the consent of the Treasury.

(3) An education authority being the council of a county, and the council of a non-county borough or urban district being a local education authority for elementary education under the Education Act, 1921, may, as part of its powers in relation to higher education, enter into and carry into effect arrangements or agreements for the co-operation of the council of the borough or district with the county council in respect of the exercise by the county council of their powers under this section either—

- (a) by rendering to the county council such assistance as may be arranged or agreed; or
- (b) by exercising within the borough or district on behalf of the county council all or any of the powers of that council under this section;

and any such arrangement or agreement may amongst other things provide for the proportion in which the

expenses incurred under it are to be borne by the councils respectively. PART VI.
—cont.

(4) If a scheme under this section provides for the exercise by the council of a non-county borough or an urban district of the powers of the county council under this section, the scheme may also provide for the repayments and payments referred to in subsection (2) of this section being made direct to the first-mentioned council instead of to the county council.

(5) The provisions of section one hundred and eighteen of the Education Act, 1921, so far as they relate to grants to education authorities in respect of the exercise of their powers and duties under this section, shall have effect as if the Minister were substituted for the Board of Education.

(6) Nothing in this section shall affect the provisions of subsection (2) of section forty-two of the Unemployment Act, 1934, except that for the reference therein to section six of the Unemployment Insurance Act, 1923, there shall be substituted a reference to this section. 13 & 14
Geo. 5. c. 2.

82. The Minister may make regulations requiring employers, when any person (whether an insured contributor or not) who is between the minimum age for entry into insurance and the age of eighteen years leaves their employment, to give notice thereof to the Minister in the prescribed manner. Notification
when
persons
under
eighteen
leave em-
ployment.

83.—(1) The powers and duties of education authorities in England under this Part of this Act shall be exercised and performed as part of their powers and duties under the Education Act, 1921, and the powers and duties under that Act of local education authorities for the purposes of higher education shall extend to authorised courses, and accordingly an authorised course shall, in relation to such powers and duties, be deemed to be a school. General
provisions
as to
education
authorities.

(2) The powers and duties of education authorities in Scotland under this Part of this Act shall be exercised and performed as part of their duties under the Education (Scotland) Acts, 1872 to 1928, and shall include, in

PART VI.
—*cont.*

relation to the provision of authorised courses in pursuance of section seventy-six of this Act—

8 Edw. 7.
c. 63.

(a) the like powers and duties as are conferred or imposed by the said Acts with regard to the provision of schools;

(b) the power and duty conferred by section four of the Education (Scotland) Act, 1908; and

(c) power to pay travelling expenses necessarily incurred by persons required to attend authorised courses.

(3) Any sum by which any education grants under any other Act are increased by reason of the additional powers and duties conferred and imposed by the provisions of this Part of this Act on education authorities shall be defrayed out of moneys provided by Parliament.

PART VII.

MISCELLANEOUS AND GENERAL.

Legal.

Deter-
mination of
questions by
Minister
and appeals
from
Minister.

84.—(1) Where under this Act any question is to be decided by the Minister subject to the provisions of this section—

(a) any person aggrieved by the decision of the Minister on any such question may appeal from that decision to the High Court; and

(b) the Minister may, if he thinks fit, instead of himself deciding any such question, refer the question for decision to the High Court.

(2) The Minister may, on new facts being brought to his notice, revise a decision given by him of any such question, other than a decision against which an appeal is pending or as respects which the time for appealing has not expired, and an appeal shall lie against any such revised decision in the same manner as against an original decision.

(3) Provision shall be made by rules of court for regulating appeals and references to the High Court under this section, and those rules shall provide for limiting the time within which such an appeal may be brought and for the determination in a summary manner of any such appeals or references, and for requiring notice of any such appeals to be given to the Minister.

(4) The Minister shall be entitled to appear and be heard on any appeal or reference under this section. PART VII.
—cont.

(5) Notwithstanding anything in any Act—

(a) an appeal under this section shall be to a single judge of the High Court to be nominated by the Lord Chancellor for the purpose; and

(b) the decision of the High Court on an appeal or reference under this section shall be final.

(6) In the application of this section to Scotland, the Court of Session shall be substituted for the High Court, but paragraph (a) of the last foregoing subsection shall not apply to Scotland, and any power conferred upon the Court of Session by paragraph (j) of section sixteen of the Administration of Justice (Scotland) Act, 1933, to modify, amend or repeal any provision of section ten of the Unemployment Insurance Act, 1920, shall include power to modify, amend or repeal so much of this section as re-enacts that provision. 23 & 24
Geo. 5. c. 41.

(7) The Minister in exercising the power of deciding questions vested in him by this Act shall have regard to the decisions given by the umpire under the enactments repealed by the Unemployment Insurance Act, 1920.

(8) The Minister may by regulations prescribe the procedure to be followed on the consideration of questions to be decided by him under this Act.

85.—(1) In any proceedings—

(a) for an offence under this Act; or

(b) involving any question as to the payment of contributions under this Act; or

(c) for the recovery of any sums due to the Unemployment Fund;

Minister's
decision to
be conclu-
sive for
purposes
of pro-
ceedings
under Act.

the decision of the Minister on any question whether or not a person is or was an employed person, or as to who is or was the employer of an employed person, shall, unless an appeal against the decision is pending or the time for so appealing has not expired, be conclusive for the purpose of those proceedings.

(2) If such a decision has not been obtained and the decision of any such question is necessary for the determination of the proceedings, the question shall be referred to the Minister for decision in accordance with the provisions of this Act.

PART VII.

—cont.

(3) Where any such appeal is pending or the time for so appealing has not expired, or where any question has been referred to the Minister as aforesaid, the court dealing with the case shall adjourn the proceedings until such time as a final decision on the question has been obtained.

Penalty for
false repre-
sentations
and for
failure to
comply with
Act.

86.—(1) If any person, for the purpose of obtaining any benefit or payment under this Act, either for himself or for any other person, or for the purpose of avoiding any payment to be made by himself under this Act or enabling any other person to avoid any such payment, knowingly makes any false statement or false representation, he shall be liable on summary conviction to imprisonment for a term not exceeding three months.

(2) If any person is guilty of any contravention of, or non-compliance with, any of the requirements of this Act or the regulations made thereunder, in respect of which no special penalty is provided, he shall for each offence be liable on summary conviction to a fine not exceeding ten pounds.

(3) Nothing in this section shall be construed as preventing the Minister from recovering by means of civil proceedings any sums due to the Unemployment Fund.

General
provisions
as to
prosecutions
under Act.

87.—(1) Proceedings for an offence under this Act shall not be instituted—

(a) in England, except by or with the consent of the Minister or by an inspector or other officer appointed for the purpose of this Act and authorised in that behalf by special or general directions of the Minister; or

(b) in Scotland, except by the Minister, the Procurator-Fiscal, or any such inspector or officer so authorised as aforesaid.

(2) Any such inspector or other officer may, although not a counsel or solicitor, prosecute or conduct before a court of summary jurisdiction any such proceedings as aforesaid.

(3) Notwithstanding any provision in any Act prescribing the period within which summary proceedings may be commenced, proceedings for an offence under this Act may be commenced at any time within the period

of three months from the date on which evidence, sufficient in the opinion of the Minister to justify a prosecution for the offence, comes to his knowledge, or within the period of twelve months after the commission of the offence, whichever period last expires.

PART VII.
—cont.

(4) For the purposes of the last foregoing subsection a certificate purporting to be signed by the Minister as to the date on which such evidence as aforesaid came to his knowledge shall be conclusive evidence thereof.

88.—(1) All sums due to the Unemployment Fund under this Act shall be recoverable as debts due to the Crown, and without prejudice to any other remedy may be recovered by the Minister summarily as a civil debt.

Civil proceedings to recover sums due to Unemployment Fund.

(2) Proceedings in England for the summary recovery as civil debts of sums due to the Unemployment Fund may, notwithstanding anything in any Act to the contrary, be brought at any time within three years from the time when the matter complained of arose.

(3) Proceedings for the summary recovery as civil debts of sums due to the Unemployment Fund may be instituted by an inspector or other officer appointed for the purpose of this Act and authorised in that behalf by special or general directions of the Minister, and any such inspector or officer may, although not a counsel or solicitor, conduct such proceedings.

89.—(1) The wife or husband of a person charged with an offence under this Act may be called as a witness either for the prosecution or defence and without the consent of the person charged.

Evidence in proceedings under Act.

(2) It shall be no objection to the competency of a person to give evidence as a witness in proceedings in Scotland under this Act that the proceedings are prosecuted or conducted by that person.

90. Where under any provisions of this Act or any regulations made thereunder the Minister is required or authorised to hold, or to appoint any person to hold, an inquiry, the witnesses shall, if the Minister or the person holding the inquiry, as the case may be, thinks fit, be examined on oath, and the person holding the inquiry shall have power to administer oaths for the purpose.

Evidence on oath at statutory inquiries.

PART VII.

—*cont.*Proof of age,
marriage
and death.

91.—(1) Where for the purposes of this Act the age, marriage or death of any person is required to be proved by the production of a certificate of birth, marriage or death, any person shall,—

(a) on presenting a written requisition in such form and containing such particulars as may be from time to time prescribed by the Minister of Health or the Department of Health for Scotland, as the case may be; and

(b) on payment of a fee, in the case of a birth certificate, of sixpence, and, in the case of a marriage or death certificate, of one shilling;

be entitled to obtain a certified copy of the entry of the birth, marriage or death, as the case may be, of the first-mentioned person in the register of births, marriages or deaths, as the case may be, under the hand of the registrar or superintendent registrar or other person having the custody thereof.

(2) Forms for such requisitions as aforesaid shall on request be supplied without any charge by every registrar of births and deaths, and by every superintendent registrar or other person having the custody of the register.

Representa-
tion of
deceased or
insane con-
tributors.

92. The Minister may by regulations make provision for the appointment of a person to receive, on behalf of or as representative of an insured contributor who becomes of unsound mind or dies, any sums payable out of the Unemployment Fund to or in respect of him.

Exemption
of docu-
ments from
stamp duty.

93. Stamp duty shall not be chargeable upon the following documents used in connection with business under this Act—

(a) Draft or order or receipt given by or to an association or branch thereof in respect of money payable in pursuance of this Act or given in respect of benefit payable under any special or supplementary scheme, or in respect of any sums payable to the body charged with the administration of a special or supplementary scheme, or in respect of any sums payable by an association to its members in pursuance of a special arrangement:

- (b) Letter or power of attorney granted by any person as trustee for the transfer of any money invested in his name in the public funds or in any other securities and forming part of any funds applicable for the purpose of any special or supplementary scheme :
- (c) Agreement, bond, or other security made or given for the purpose of, or in connection with, any special arrangement or any special or supplementary scheme :
- (d) Appointment or revocation of appointment of an agent, appointment of a new trustee, and any conveyance or transfer made for effectuating the appointment of a new trustee, and any other document authorised by or in pursuance of this Act or of any special or supplementary scheme or otherwise required in order to give effect to the provisions of this Act, including a statutory declaration :
- (e) Receipt given by an insured contributor in respect of benefit payable, or by any person in respect of a refund or return of contributions paid under this Act.

PART VII.
—cont.

Provisions as to Special Classes of Persons.

94. This Act shall apply to persons employed by or under the Crown to whom this Act would apply if the employer were a private person, subject however to such modifications as may be made therein by Order in Council for the purpose of adapting the provisions of this Act to the case of such persons :

Persons
employed
by or
under the
Crown.

Provided that this Act shall not apply to persons serving in an established capacity in the permanent service of the Crown or to persons who, having been granted certificates by the Civil Service Commissioners, are serving a probationary period preliminary to establishment.

95.—(1) Where any of the following persons, that is to say—

- (a) an officer of a reserve of officers or a man of a reserve force ; or

Persons
temporarily
serving in
armed forces
of the
Crown.

PART VII.
—*cont.*

- (b) an officer or man of the territorial army or the auxiliary air force; or
- (c) a retired officer;

is being trained and is in receipt of pay out of moneys provided by Parliament for the navy, army or air force services and was normally before his training a person employed in insurable employment, he shall while so training be deemed, either for the purposes of this Act or (except in the case of an officer) for the purposes of the enactments relating to unemployment insurance in force in Northern Ireland, to be an employed person in the service of the Crown.

(2) Where any person—

- (a) being an officer of a reserve of officers or a man of a reserve force, is called out for service otherwise than for training; or
- (b) being an officer or man of the territorial army or of the auxiliary air force, is called out for actual military or air force service, as the case may be, or is embodied; or
- (c) being a retired officer is called out or taken into employment, or being a naval pensioner is called into actual service, on an occasion of great emergency; or
- (d) is given a temporary commission in the naval, marine, land or air forces or a temporary warrant in the Royal Navy, Royal Marines or naval reserves, or engages as a seaman in the Royal Navy, or enlists as a marine in the Royal Marines, as a soldier in the regular army or as an airman in the regular air force, on an occasion of great emergency for service during the emergency;

he shall, if he was normally a person employed in insurable employment before the date on which he is so called out for or into service, embodied, taken into employment, given the commission or warrant, engages or enlists, as the case may be, be deemed either for the purposes of this Act or (except in the case of an officer or a person given a temporary commission or warrant) for the purposes of the enactments relating to unemployment insurance in force in Northern Ireland, during the period of four months from that date or during the period

between that date and the date on which the service, embodiment or employment terminates, whichever period is the shorter, to be an employed person in the service of the Crown.

PART VII.
—*cont.*

(3) For the purposes of this section—

- (a) the expression “ officer of a reserve of officers ” means an officer of the naval reserves, the regular army reserve of officers, the supplementary reserve of officers, the air force reserve, the air force special reserve, the territorial army reserve of officers or the auxiliary air force reserve;
- (b) the expression “ man of a reserve force ” means a man of the naval reserves, the army reserve or the air force reserve;
- (c) the expression “ retired officer ” means an officer on the retired or emergency lists of the Royal Navy or Royal Marines, a retired officer of the regular army or an officer on the retired list of the Royal Air Force;
- (d) the expression “ insurable employment,” in relation to any person includes such employment as would make him an employed person within the meaning of the enactments relating to unemployment insurance in force in Northern Ireland.

96.—(1) Subject to the provisions of this section, every seaman, marine, soldier and airman discharged from the service at any time after the thirtieth day of June, nineteen hundred and twenty-seven shall, either for the purposes of the provisions of this Act relating to the rights of an insured contributor with respect to benefit, or for the purposes of the corresponding provisions of the enactments relating to unemployment insurance in force in Northern Ireland, but not for any other purpose, be treated as though he were on the date of his discharge an insured contributor who ceased to be employed on that date and in respect of whom a number of contributions equal to the number of weeks during which he had served in the forces after the said thirtieth day of June had been paid at the rate of one contribution for each week over a period ending with the week in which he was discharged :

Discharged
seamen,
marines,
soldiers and
airmen.

PART VII.
—cont.

Provided that, in the case of a person discharged before, or serving in the forces on, the twenty-sixth day of July, nineteen hundred and thirty-four, the number of the said contributions shall not be less than thirty.

(2) For the purposes of the last foregoing subsection a part of a week shall be reckoned as a week.

(3) For the purpose of qualifying seamen, marines, soldiers and airmen discharged as aforesaid to be treated in the manner provided by the foregoing provisions of this section, the Admiralty, Army Council and Air Council respectively shall, subject as hereinafter provided, out of moneys provided by Parliament for navy, army and air force services respectively, pay by way of employers' and employed persons' contributions in respect of all seamen, marines, soldiers and airmen so discharged such sum as will, in the opinion of the Treasury, be sufficient to enable them to be so treated.

(4) Any payments made before the said twenty-sixth day of July under section forty-one of the Unemployment Insurance Act, 1920, (as amended by any subsequent enactment), by way of employers' and employed persons' contributions in respect of men discharged between that date and the said thirtieth day of June shall be increased by such an amount as may in the opinion of the Treasury be necessary, having regard to the provisions of subsection (1) of this section.

(5) The sums to be paid under this section out of moneys provided by Parliament for navy, army and air force services—

(a) shall be calculated in such manner as the Treasury may direct; and

(b) shall be paid in such manner and at such dates as may be agreed upon between the Minister on the one hand, and the Admiralty, the Army Council and the Air Council respectively on the other hand; and

(c) shall be apportioned in such manner as may be determined by the Joint Exchequer Board established under section thirty-two of the

Government of Ireland Act, 1920, between the Unemployment Fund and the corresponding fund established under the enactments relating to unemployment insurance in force in Northern Ireland;

PART VII.
—*cont.*

10 & 11
Geo. 5. c. 67.

and the sums so apportioned shall be paid into the respective funds.

(6) Nothing in this section shall apply to any seaman, marine, soldier or airman who is discharged at his own request or at the request of his parent or guardian or of some other interested person, unless—

(a) he is discharged within three months of the date when he is due for discharge for the purpose of taking up civil employment which would not otherwise remain open for him; or

(b) he is a person who, being a soldier, extended his service for the purpose of undergoing a vocational training course and was, more than three months before the date on which the extended period of his service with the colours would be completed, discharged while serving at home for the purpose of enabling him to take up civil employment which could not be held open.

(7) Nothing in this section shall apply to any seaman, marine, soldier or airman who is a deserter or who is discharged or dismissed in consequence of having been convicted on any proceedings under the Naval Discipline Act, the Army Act or the Air Force Act, or by any civil court, or to any person who is discharged on account of fraudulent enlistment.

(8) Nothing in this section shall apply to recruits or re-enlisted pensioners not finally approved.

(9) Nothing in this section shall apply to any seaman, marine, soldier or airman to whom subsection (2) of the last foregoing section of this Act applies, if he is discharged within the period of four months mentioned in that subsection, and, where any such seaman, marine, soldier or airman is not discharged within that period, the

PART VII. sum payable in respect of him under this section on his
 —*cont.* discharge shall be reduced by the amount of any contributions paid in respect of him during that period under this Act, and those contributions shall be deemed not to have been paid in respect of him.

(10) In this section the following expressions have the meanings hereby respectively assigned to them :—

- (a) “airman” means a man of the regular air force and also a man of the auxiliary air force who, having been called out for actual air force service or having been embodied, is not discharged within the period of four months from the date when he is so called out for service or embodied, but does not include a native or Maltese recruited outside the United Kingdom;
- (b) “discharge” includes transfer to the reserve in the case of a seaman, marine, soldier or airman who on the completion of any term of service is transferred to any reserve and the expression “discharged” shall be construed accordingly;
- (c) “seaman” and “marine” mean respectively a seaman and a marine within the meaning of the Naval and Marine (Pay and Pensions) Act, 1865, except that the expression “seaman” does not include native ratings or Maltese recruited outside the United Kingdom;
- (d) “soldier” means a soldier of the regular forces and also a man of the territorial army who, having been called out for actual service, or having been embodied, is not discharged within the period of four months from the date when he is so called out for service or embodied, but does not include any soldier of His Majesty’s Indian forces or Royal Malta Artillery, or a native soldier of any regiment raised outside the United Kingdom.

97.—(1) Every constable of the metropolitan police force appointed for a fixed period of service who is discharged from the force on the completion of that period shall, for the purposes of the provisions of this Act relating to the rights of an insured contributor with respect to benefit but not for any other purpose, be treated as though he were, on the date of his discharge, an insured contributor who ceased to be employed on that date and in respect of whom contributions equal to the number of weeks during which he has served in the force had been paid at the rate of one contribution for each week over a period ending with the week in which he was discharged.

PART VII.

—cont.

Short
service
constables
of the
metro-
politan
police force.

(2) For the purposes of the last foregoing subsection any part of a week shall be reckoned as a week.

(3) For the purpose of qualifying such constables as aforesaid to be treated for the purposes of this Act in the manner provided by the foregoing provisions of this section, there shall be paid to the Unemployment Fund out of the Metropolitan Police Fund by way of employers' and employed persons' contributions in respect of all such constables so discharged as aforesaid, such sums as will, in the opinion of the Treasury, be sufficient to enable them to be so treated.

(4) The sums to be paid under this section out of the Metropolitan Police Fund shall be calculated in such manner as the Treasury may direct, and shall be paid in such manner and at such dates as may be agreed upon between the Minister and the Secretary of State.

98.—(1) The Minister may, after consultation with the Board of Trade, make regulations modifying in such manner as he thinks proper the provisions of this Act (other than provisions determining the rates of contributions) in their application to masters, seamen and apprentices to the sea service and sea fishing service.

Persons em-
ployed in
the
mercantile
marine.

(2) Any such regulations may in particular, without prejudice to the generality of the foregoing provisions of this section, provide—

- (a) for the exclusion from this Act of any masters, seamen or apprentices who are neither domiciled nor have a place of residence in the United Kingdom, and for the payment by the employers of such masters, seamen or apprentices of

PART VII.
—*cont.*

contributions as if they were not excluded from this Act;

- (b) for the administration in the prescribed manner of the funds arising from the contributions paid by employers in respect of masters, seamen or apprentices who are so excluded from this Act, and for the objects towards which any such funds may be applied.

(3) References to the Unemployment Fund in sections eighteen, eighty-five and eighty-six and subsections (1) and (2) of section eighty-eight of this Act shall be construed as including references to the seamen's special fund or any similar fund established by any regulations for the time being in force under this section.

Persons
employed
on night
work.

99. The Minister may make regulations prescribing, either generally or with respect to any special class of cases, that where a period of employment begun on one day extends over midnight into another day, the person employed shall be treated as having been employed on such one or other only of those two days as the regulations may direct.

Provisions for Promoting Employment.

Power of
Minister to
assist
schemes for
promoting
greater
regularity
of employ-
ment.

100.—(1) Where any scheme for promoting greater regularity of employment in any industry is, on the joint application of an organisation representing employers and an organisation representing workpeople in the industry, approved by the Minister, the Minister may in accordance with arrangements made by him with the consent of the Treasury, assist the administration of the scheme by attaching officers of the Ministry of Labour to help in the administration thereof and by such other means as he thinks fit.

(2) The Minister may, in accordance with such arrangements as aforesaid, issue on behalf of employers to persons to whom any such scheme applies, sums by way of wages or additional benefits in respect of unemployment or compensation for loss of employment, but any arrangement making provisions for the issue of any such sums shall also make provision for paying to the Minister any sums to be so issued by him and any expenses incurred by him which are attributable to the scheme.

(3) If an organisation representing employers and an organisation representing workpeople in any industry make to the Minister a joint representation as to any difficulty in the operation of any scheme for promoting greater regularity of employment in the industry, or in making any further scheme for that purpose for the industry, the Minister may appoint one or more persons to hold an inquiry into the circumstances giving rise to the difficulty and to make a report to him with respect thereto.

PART VII.
—cont.

(4) The fee to be paid by the Minister to any person holding such an inquiry as aforesaid shall be such as the Minister may with the consent of the Treasury direct.

(5) In this section the expression “industry” has the same meaning as in section seventy-two of this Act.

101. The Minister shall, so far as practicable, make arrangements with employers for the notification by them to employment exchanges of situations in their employments which are vacant or about to become vacant, and for that purpose the Minister shall consult associations of employers and employees, as the circumstances of the case may require.

Notification
of vacancies
by em-
ployers.

102. With a view to promoting employment, the Minister may, on such terms and subject to such conditions as may be determined by schemes made by him with the approval of the Treasury, make provision by way of grant or loan or otherwise for the purpose of facilitating the removal of workers and their dependants from one place to another and, if both those places are within the United Kingdom, for assisting towards their re-settlement.

Removal
of workers
to promote
employ-
ment.

103.—(1) Where any payment, whether by way of grant or advance, has been made out of moneys provided by Parliament to or in respect of any person, being an insured contributor in whose case the first statutory condition is fulfilled, on account of the expenses of travelling to any place for the purpose of obtaining employment, the Minister may, whether employment has or has not been found for that person at that place, repay out of the Unemployment Fund to the Exchequer, in such manner as the Treasury may direct, such part

Payment
out of Un-
employment
Fund of
travelling
expenses of
insured con-
tributors.

PART VII. of the grant or advance as may, with the consent of the
—cont. Treasury, be prescribed.

(2) If, in the event of employment being found for a person to or in respect of whom any such grant or advance as aforesaid has been made, that person, without reasonable excuse, either fails to enter on, or within seven days of entering thereon leaves, the employment found for him, the sum repaid under this section out of the Unemployment Fund may be recovered from him or deducted from any benefit which may thereafter become payable to him, and if so recovered shall be paid into the Unemployment Fund.

Regulations, Orders and Special Orders.

Power of
Minister to
make
regulations.

104.—(1) The Minister may make regulations for any of the purposes for which regulations may be made under this Act and for prescribing anything which, under this Act, is to be prescribed, and generally for carrying this Act into effect.

(2) Before making any regulations under this Act, except under section seventy-eight or section eighty-two of this Act, the Minister shall submit to the Unemployment Insurance Statutory Committee a draft of the regulations.

(3) When any draft regulations are so submitted to them, the Committee shall publish, in such manner as they think best adapted for informing persons affected, notice of the fact and of the place where copies of the draft may be obtained and of the time, which shall not be less than fourteen nor more than twenty-eight days, within which any objection made with respect to the draft by or on behalf of persons affected must be sent to them.

(4) Every objection shall be in writing and shall state the portions of the draft which are objected to, the specific grounds of objection, and the omissions, additions or modifications asked for.

(5) The Committee shall forthwith consider any draft submitted to them under this section and shall consider any objection made by or on behalf of any person appearing to them to be affected which is sent to them within

the required time, and shall report on the draft to the Minister and the Minister shall consider the report of the Committee and may then make the regulations either in the form of the draft or with such amendments as he thinks fit :

PART VII.
—*cont.*

Provided that, where the Minister certifies that on account of urgency or any special reason any regulations should come into operation without delay, the Minister may, before receiving or considering the report of the Committee on the draft thereof make the regulations as provisional regulations, so, however, that no provisional regulations shall continue in force for longer than three months after the receipt by the Minister of the report.

(6) Whenever any regulations made by the Minister (being neither regulations made under section seventy-eight or section eighty-two of this Act nor provisional regulations) are laid before Parliament in pursuance of the next following section of this Act, there shall be laid together therewith the report of the Committee on the draft thereof and a statement by the Minister showing what amendments, if any, have been made since the report of the Committee and what effect (if any) has been given to any recommendations of the Committee, and, if effect has not been given to any recommendation, giving reasons for not adopting it.

105.—(1) Regulations made under this Act shall be laid before each House of Parliament as soon as may be after they are made, and if an address is presented to His Majesty by either House of Parliament within the next subsequent twenty days on which that House has sat next after any such regulation is laid before it, praying that the regulation may be annulled, it shall thenceforth be void, but without prejudice to the validity of anything previously done thereunder or to the making of any new regulation.

General
provisions
as to
regulations.

(2) Regulations made under this Act shall have effect as if enacted in this Act.

(3) Section one of the Rules Publication Act, 1893, 56 & 57 Vict. c. 66. (which requires notices to be given of a proposal to make statutory rules), shall not apply to regulations made under this Act.

PART VII.
—cont.

(4) This section applies to all regulations made under this Act, whether by the Minister or otherwise.

Provisions
as to special
orders.

106.—(1) Before the Minister makes any special order under this Act, he shall publish, in such manner as he may think best adapted for informing persons affected, notice of the proposal to make the order, and of the place where copies of the draft order may be obtained, and of the time (which shall not be less than twenty-one days) within which any objection made with respect to the draft order by or on behalf of persons affected must be sent to him.

(2) Every objection shall be in writing and shall state the draft order or the portions of the draft order which are objected to, the specific grounds of objection, and the omissions, additions, or modifications asked for.

(3) The Minister shall consider any objection made by or on behalf of any persons appearing to him to be affected which is sent to him within the required time, and he may, if he thinks fit, amend the draft order, and shall then cause the amended draft to be dealt with in like manner as an original draft.

(4) When the Minister does not amend or withdraw any draft order to which any objection has been made, then (unless the objection either is withdrawn or appears to him to be frivolous) he shall, before making the order, direct an inquiry to be held in the manner hereinafter provided.

(5) The Minister may appoint a competent and impartial person to hold an inquiry with regard to any draft special order, and to report to him thereon, and the following provisions shall have effect in relation to any such inquiry—

(a) The inquiry shall be held in public, and any objector and any other person who, in the opinion of the person holding the inquiry, is affected by the draft order may appear at the inquiry either in person or by counsel, solicitor, or agent:

(b) Subject as aforesaid and subject to the provisions of section ninety of this Act, the inquiry and all

proceedings preliminary and incidental thereto shall be conducted in accordance with rules made by the Minister: PART VII.
—cont.

- (c) The fee to be paid to the person holding the inquiry shall be such as the Minister may direct and shall be paid out of moneys provided by Parliament.

(6) The Minister may, after considering the report of the person who held the inquiry, make the order either without modification or subject to such modification as he thinks fit, or may refuse to make the order.

(7) Before a special order comes into force, it shall be laid before each House of Parliament for a period of not less than twenty days during which the House is sitting, and, if either of those Houses before the expiration of those twenty days presents an address to His Majesty against the order or any part thereof, no further proceedings shall be taken thereon, without prejudice to the making of any new order.

107. Any order or special order made under any of the provisions of this Act may be revoked, varied, or amended by an order or special order made in like manner. Power to
revoke or
vary orders.

*Provisions as to Northern Ireland, the Isle of Man
and the Channel Islands.*

108.—(1) The Minister may, with the consent of the Treasury, enter into agreements with the Ministry of Labour for Northern Ireland for enabling contributions and benefit paid in Great Britain or Northern Ireland to be taken into account in the other country for any purpose for which they would have been taken into account had they been paid in that country. Reciprocal
arrange-
ments with
Northern
Ireland.

(2) Where such an agreement has been entered into (whether before or after the commencement of this Act) then, whilst the agreement is in force and subject to any conditions contained therein, for the purpose of determining the right to benefit under this Act and the amount thereof, qualification for benefit acquired by means of contributions paid or treated as paid or work done in Northern Ireland, and the amount of unemployment

PART VII. benefit received in Northern Ireland, shall be taken into
—*cont.* account.

Provisions
of Act
applying
for purpose
of Northern
Irish un-
employment
insurance
enactments.

109. The provisions of this Act set out in the Sixth Schedule thereto shall apply for the purposes of the enactments relating to unemployment insurance for the time being in force in Northern Ireland as they apply for the purposes of this Act, subject to the following modifications, that is to say—

- (a) references to this Act shall be construed as including references to the said enactments;
- (b) references to the Minister shall be construed as including references to the Ministry of Labour for Northern Ireland;
- (c) references to the Unemployment Fund shall be construed as including references to the corresponding fund established under the said enactments;
- (d) references to employed persons shall be construed as including references to employed persons within the meaning of the said enactments;
- (e) references to unemployment stamps, books or cards shall be construed as including references to similar stamps, books and cards issued under the said enactments;
- (f) references to contributions and benefit shall be construed as including references to contributions and benefit paid or payable, as the case may require, under the said enactments;
- (g) references to a special or supplementary scheme or a special arrangement shall be construed as including references to a similar scheme or arrangement for the time being in force under the said enactments.

Reciprocal
arrange-
ments with
Isle of Man
and Channel
Islands.

110. The Minister may, with the consent of the Treasury, make arrangements with the authority administering any statutory scheme of unemployment insurance in the Isle of Man or the Channel Islands—

- (a) for the payment of unemployment benefit in the Isle of Man or Channel Islands, as the case may be, to persons who would, if they had been resident in Great Britain or Northern Ireland,

have been entitled to benefit under this Act or the enactments relating to unemployment insurance in force in Northern Ireland; and

PART VII.
—cont.

- (b) for the payment of benefit in Great Britain or Northern Ireland to persons entitled to unemployment benefit under such a scheme.

Transitional Provisions.

111.—(1) Notwithstanding anything in section thirty-two of this Act, references in the provisions of this Act to the benefit year of an insured contributor shall be construed as including references to benefit years beginning before the twenty-sixth day of July nineteen hundred and thirty-four and determined in accordance with the enactments repealed by the Unemployment Act, 1934, if and only if during the year and before the said date the insured contributor on a claim for benefit proved—

Transitional
provisions
as to
benefit.

- (a) that he was either a person in respect of whom thirty contributions had been paid within the time limited by the first statutory condition, or a person who was by virtue of subsection (5) of section five of the Unemployment Insurance Act, 1927, to be treated as having satisfied that condition; and
- (b) in the case only of a person who had exhausted his benefit rights in his last preceding benefit year, also that contributions had been paid in respect of him for ten weeks since the Sunday last before the last day in respect of which he was entitled to benefit;

17 & 18
Geo. 5. c. 30.

and accordingly references in the said provisions to the last preceding benefit year of an insured contributor shall be construed as references to the last preceding benefit year in which on a claim for benefit he so proved the matters aforesaid :

Provided that for the purposes of the reference to “ the benefit years which ended in the last five years ” in paragraph (b) of subsection (2) of section thirty-one of this Act, the expression “ benefit year ” shall be construed as including any benefit year determined in accordance with the enactments repealed as aforesaid.

PART VII.
—cont.

(2) An insured contributor in whose case a benefit year was current on the said twenty-sixth day of July—

(a) shall, subject to and in accordance with regulations made by the Minister, be treated throughout the remainder of that benefit year as if the first statutory condition continued to be fulfilled in his case; and

(b) shall not be deemed to have exhausted his benefit rights in that year on the ground that he has exhausted such rights under sub-paragraph (b) of paragraph (1) of Article one of the Unemployment Insurance (National Economy) (No. 2) Order, 1931, unless he has also exhausted such rights under section thirty-one of this Act; and

(c) shall, if he had exhausted his benefit rights in that year before the said date under the said sub-paragraph (b), but proves that there have been paid in respect of him the last of the ten contributions mentioned in that sub-paragraph, be treated, for the purpose of subsection (4) of section thirty-one and paragraph (b) of subsection (1) of section thirty-two of this Act, as if there had been paid in respect of him the last of the ten contributions mentioned in paragraph (b) of the said subsection (1).

(3) If any difficulty arises with respect to the foregoing provisions of this section, the Minister, with the consent of the Treasury, may by order make such modifications in those provisions as may appear to him necessary for preventing anomalies during the period affected by the transition to the provisions of the Unemployment Act, 1934, from the provisions of the enactments repealed by that Act:

Provided that the Minister shall not exercise the powers conferred by this subsection after the expiration of two months from the second appointed day within the meaning of the Unemployment Act, 1934, as amended by any subsequent enactment.

Transitional
provision as
to author-
ised courses.
20 & 21
Geo.5.c.16.

112. Any approved course of instruction provided by an education authority in accordance with the provisions of section fifteen of the Unemployment Insurance Act, 1930, shall, until the proposals submitted by that

authority to the Minister under subsection (1) of section thirteen of the Unemployment Act, 1934, or under section seventy-six of this Act have been approved by him, be deemed for the purposes of this Act to be an authorised course, notwithstanding that it has not been provided under or in pursuance of the last-mentioned section.

PART VII.
—cont.

*Interpretation, savings, extent, short title,
repeal and commencement.*

113.—(1) In this Act, unless the context otherwise requires, the following expressions have the meanings hereby respectively assigned to them, that is to say—

- (a) “Application for benefit” means an application for benefit made in the prescribed manner;
- (b) “Authorised course” means, subject to the provisions of the last foregoing section of this Act, a course of instruction or training course provided under or in pursuance of section seventy-six or section seventy-seven of this Act and includes, in relation to insured contributors who have attained the age of eighteen years, any training course provided by the Unemployment Assistance Board under the Unemployment Act, 1934;
- (c) “Benefit” means the sums payable under Part III of this Act to an insured contributor who is unemployed;
- (d) “Benefit rights” means, in relation to an insured contributor, his right to receive benefit for the number of days allowed in his case by the provisions of paragraphs (a) and (b) of subsection (1) of section thirty-one of this Act or by the provisions of paragraphs (a) and (b) of subsection (1) of section three of the Unemployment Act, 1934, or by the provisions of sub-paragraph (b) of paragraph (1) of Article one of the Unemployment Insurance (National Economy) (No. 2) Order, 1931, as the case may be;
- (e) “Calendar week” means the period of seven days commencing from the midnight between Sunday and Monday;

PART VII.
—*cont.*

- (f) "Claim for benefit" includes an application for benefit;
- (g) "Day" means a period of twenty-four hours from midnight to midnight or such other period of twenty-four hours as the Minister may for any general or special purpose prescribe;
- (h) "Education authority" means, except in the application of this Act to Scotland, a local education authority for the purposes of higher education under the Education Act, 1921;
- (i) "Employed person" means any person of either sex, whether a British subject or not, who has attained the minimum age for entry into insurance under this Act and is employed in insurable employment;
- (j) "Employer's contribution" means a contribution payable under the general provisions of this Act by an employer on his own behalf in respect of an employed person, whether the employed person is or is not an excluded person;
- (k) "Employment exchange" has the same meaning as the expression "labour exchange" in the Labour Exchanges Act, 1909, and includes a branch employment office and a juvenile employment bureau;
- (l) "Excepted employment" has the meaning assigned to it by section three of this Act;
- (m) "Excluded person" means an employed person who, by virtue of the provisions of section five of this Act, is not insured under this Act;
- (n) "General provisions of this Act" means the provisions of this Act other than those contained in Part V thereof relating to special and supplementary schemes;
- (o) "Insurable employment" has the meaning assigned to it by section three of this Act;
- (p) "Insurance year" means the period beginning on the twenty-seventh Monday in any calendar

year and ending on the Sunday preceding the twenty-seventh Monday in the next calendar year; PART VII.
—*cont.*

- (*q*) “Insured contributor” means a person insured under this Act;
 - (*r*) “The Minister” means the Minister of Labour;
 - (*s*) “Prescribed” means prescribed by regulations made by the Minister;
 - (*t*) “Statutory conditions” means the conditions set out in sections twenty-two to twenty-five of this Act, and references to the first, second, third and fourth statutory conditions shall be construed accordingly;
 - (*u*) “Trade dispute” means any dispute between employers and employees or between employees and employees which is connected with the employment or non-employment or the terms of employment or the conditions of employment of any persons, whether employees in the employment of the employer with whom the dispute arises or not.
- (2) For the purposes of this Act—
- (*a*) a person shall be deemed to be between any two ages therein mentioned if he has attained the first mentioned age but has not attained the second mentioned age;
 - (*b*) a person shall be deemed, according to the law in England as well as according to the law in Scotland, not to have attained the age of twenty-one years until the commencement of the twenty-first anniversary of the day of his birth, and similarly with respect to other ages.

114.—(1) Nothing in this Act shall affect any Savings.
Order in Council, order, rule, regulation, scheme, arrangement or requirement made, certificate issued, notice, decision, determination, direction or approval given, or thing done, under any former enactment relating to unemployment insurance, and every such Order in Council, order, rule, regulation, scheme, arrangement, requirement, certificate, notice, decision, determination, direction or approval shall, if in force at the commencement of this Act, continue in force and, subject as

PART VII. hereinafter provided, shall, so far as it could have
—*cont.* been made, issued or given under this Act, have effect
as if made, issued or given under the corresponding
enactment of this Act.

21 & 22
Geo. 5. c. 36.

(2) Any regulations made before the twenty-sixth day of July, nineteen hundred and thirty-four, under section one of the Unemployment Insurance (No. 3) Act, 1931, shall, if in force at the commencement of this Act, have effect as if they were orders made under section fifty-five of this Act, and subsections (6), (7) and (8) of the last-mentioned section shall be deemed to have been complied with in respect thereof.

(3) Any special orders made before the said twenty-sixth day of July under section thirty-nine of the Unemployment Insurance Act, 1920, shall, if in force as aforesaid, have effect as if they were regulations made under section ninety-eight of this Act.

(4) Any orders or special orders made before the said twenty-sixth day of July under section four of the Unemployment Insurance Act, 1920, shall, if in force as aforesaid, have effect as if they were regulations made under subsection (1) of section one hundred and four of this Act.

(5) Any special orders made before the said twenty-sixth day of July under paragraph (c) of Part I of the First Schedule to the Unemployment Insurance Act, 1920, or under paragraph (j) of Part II of that Schedule shall, if in force as aforesaid, have effect as if they were regulations made respectively under paragraph 3 of Part I of the First Schedule to this Act and paragraph 11 of Part II of that Schedule.

(6) Subsections (2) to (6) of section one hundred and four of this Act shall be deemed to have been complied with in respect of any regulations made by the Minister before the said twenty-sixth day of July which are in force at the commencement of this Act, and in respect of any orders or special orders which have effect as if they were regulations by virtue of the last three foregoing subsections.

(7) Any person holding office or acting or serving under or by virtue of any former enactment relating to unemployment insurance shall continue to hold his

office or to act or serve as if he had been appointed under this Act. PART VII.
—*cont.*

(8) Any document referring to any former enactment relating to unemployment insurance shall be construed as referring to the corresponding enactment of this Act.

(9) All funds and accounts constituted under this Act shall be deemed to be in continuation of the corresponding funds and accounts constituted under the former enactments relating to unemployment insurance.

(10) References in this Act to insured contributors shall, so far as is necessary for the purpose of preserving any accruing right, be construed as including references to persons insured under the former enactments relating to unemployment insurance, and any contributions or benefit paid in respect of any persons under the said enactments shall, for the purposes of this Act, be treated as if they had been paid under the corresponding enactments of this Act.

(11) Any body of persons having immediately before the commencement of this Act power to transact business relating to unemployment insurance shall continue to have the same power in that behalf which it would have had if this Act had not passed.

(12) In this section the expression “former enactment relating to unemployment insurance” means any enactment repealed by this Act and any enactment repealed by the Unemployment Insurance Act, 1920.

(13) Nothing in this section shall be taken to prejudice the provisions of section thirty-eight of the Interpretation Act, 1889.

52 & 53 Vict.
c. 63.

115.—(1) The following provisions of this Act shall extend to Northern Ireland, namely—

Application
to Northern
Ireland.

- (a) section ninety-five (except in so far as it relates to officers and persons given a temporary commission or warrant), section ninety-six and section one hundred and ten; and
- (b) so much of this Act as repeals subsection (2) of section forty, section forty-one and section forty-two of the Unemployment Insurance Act, 1920, and the enactments amending those sections.

PART VII.
—cont.

(2) Save as aforesaid, nothing in this Act shall affect the law relating to unemployment insurance in force in Northern Ireland at the commencement of this Act.

Short title,
repeal and
commence-
ment.

116.—(1) This Act may be cited as the Unemployment Insurance Act, 1935.

(2) The enactments set out in Part I of the Seventh Schedule to this Act are hereby repealed to the extent specified in the third column of that Part of that Schedule, and the Orders set out in Part II of that Schedule are hereby revoked to the extent specified in the third column of that Part of that Schedule.

(3) This Act shall come into operation on the eighteenth day of March, nineteen hundred and thirty-five.

SCHEDULES.

Sections 3
and 114.

FIRST SCHEDULE.

INSURABLE AND EXCEPTED EMPLOYMENTS.

PART I.

EMPLOYMENTS WITHIN THE MEANING OF THIS ACT.

1. Employment in Great Britain under any contract of service or apprenticeship, written or oral, whether expressed or implied, and whether the employed person is paid by the employer or some other person, and whether under one or more employers, and whether paid by time or by the piece, or partly by time and partly by the piece, or otherwise, or, except in the case of a contract of apprenticeship, without any money payment.

2. Employment under such a contract as aforesaid as master or a member of the crew of any ship whose port of registry is a port in Great Britain or of any other British ship or vessel (not being a ship whose port of registry is a port in Northern Ireland or a ship or vessel registered in the Irish Free State) of which the owner, or, if there is more than one owner, the managing owner or manager, resides or has his principal place of business in Great Britain.

3. Employment under any public or local authority, other than any such employment as may be excluded by regulations.

1ST SCH.
—cont.

PART II.

GENERAL LIST OF EXCEPTED EMPLOYMENTS.

1. Employment in agriculture, including horticulture and forestry.

2. Employment in domestic service, except where the employed person is employed in any trade or business carried on for the purposes of gain.

3. Employment as a female professional nurse for the sick, or as a female probationer undergoing training for employment as such a nurse.

4. Except as otherwise provided in this Act, employment in the naval, military or air service of the Crown, including service in officers' training corps.

5. Except as otherwise provided in this Act, employment, otherwise than in a temporary capacity, as a member of any police force to which the Police Act, 1919, applies.

9 & 10
Geo. 5. c. 46.

6. Employment as a teacher of any person who is in contributory service within the meaning of the Teachers (Superannuation) Act, 1925, or in a capacity which, if that person were under the age of sixty-five years, would be such contributory service, or employment as a teacher to whom a scheme under the Education (Scotland) (Superannuation) Acts, 1919 to 1925, as amended by any subsequent enactment, applies, or, in the event of any similar enactment being hereafter passed as respects teachers or any class of teachers, as a teacher to whom such enactment applies.

15 & 16
Geo. 5. c. 59.

7. Employment as a teacher in a State-aided school in Scotland at any time after the person employed has undergone an examination in order to qualify for the position of a certificated teacher and before the announcement of the result of the examination, and employment as a junior student in such a school, and employment in a public elementary school in England as a pupil or student teacher.

8. Employment as an agent paid by commission or fees or a share in the profits, or partly in one and partly in another such ways, where the person so employed is mainly dependent for his livelihood on his earnings from some other occupation, or where he is ordinarily employed as such an agent by more than one employer, and his employment under no one of those employers is that on which he is mainly dependent for his livelihood.

1st SCH.
—cont.

9. Employment otherwise than by way of manual labour and at a rate of remuneration exceeding in value two hundred and fifty pounds a year, or, in cases where such employment involves part-time service only, at a rate of remuneration which, in the opinion of the Minister, is equivalent to a rate of remuneration exceeding two hundred and fifty pounds a year for whole-time service.

10. Employment of a casual nature otherwise than for the purposes of the employer's trade or business, and otherwise than for the purposes of any game or recreation where the persons employed are engaged or paid through a club, and in such case the club shall be deemed to be the employer.

11. Employment of any class which may be specified in regulations made by the Minister, or in a special order made under the National Health Insurance Acts, 1924 to 1932, and declared by the Minister to apply for the purposes of this Act, as being of such a nature that it is ordinarily adopted as subsidiary employment only and not as the principal means of livelihood.

12. Employment as a member of the crew of a fishing vessel where the employed person is wholly remunerated by a share in the profits or the gross earnings of the working of the vessel.

13. Employment in the service of the husband or wife of the employed person.

14. Employment in respect of which no wages or other money payment is made, where the person employed is the child of, or is maintained by, the employer.

PART III.

EMPLOYMENTS WHICH ARE EXCEPTED IF CERTIFIED BY MINISTER.

1. This Part of this Schedule applies to the following employments, that is to say:—

- (a) employment under any government department (including any department or office declared by a Minister of the Crown to be under his ultimate control) or public or local authority; or
- (b) employment in the service of any railway company or a joint committee of two or more such companies; or
- (c) employment in the service of any public utility company, that is to say, any company carrying on any undertaking for the supply of gas, water, hydraulic

power or electricity, any dock or canal undertaking, or any tramway undertaking, including a light railway constructed wholly or mainly on a public road; or

1st SCH.
—cont.

- (d) employment in which the persons employed are entitled to rights in a superannuation fund established by or in pursuance of an Act of Parliament for the benefit of persons in that employment.

2. An employment to which this Part of this Schedule applies shall be excepted employment where the Minister certifies—

- (a) that the employment is, in the Minister's opinion, having regard to the normal practice of the employer, permanent in character; and
- (b) that the employed person has completed three years' service in the employment; and
- (c) that the other circumstances of the employment, in the Minister's opinion, make it unnecessary that he should be insured under this Act.

3. In the case of employment under a public or local authority, the Minister may, if any enactment relating to the superannuation of persons in that employment provides for the aggregation of service in that employment under two or more employers, whether the service has been continuous or not, treat such service for the purposes of this Part of this Schedule as if it had been service in the same employment.

4. Where a person serving under any employer in employment which is excepted under this Part of this Schedule ceases to serve under that employer and on so ceasing enters other employment to which this Part of this Schedule applies, he shall, on entering the new employment, be treated for the purpose of the power of the Minister to certify under this Part of this Schedule as if he had completed three years' service in the new employment.

5. Where, as the result of the formation of any company or of the amalgamation of any companies, or of any other like process, any person, company or body of persons is succeeded by a company or body as employer in any business or undertaking, the Minister may, in determining for the purposes of the provisions of this Part of this Schedule what is the normal practice of the employer or whether a person has completed three years' service in the employment, treat the normal practice of the old employer as being the normal practice of the new employer and treat any service under the old employer as being service under the new employer.

Sections 5, 7
and 73.

SECOND SCHEDULE.

PERSONS EXCLUDED BY REASON OF HAVING BEEN EMPLOYED IN CERTAIN EMPLOYMENTS EXCEPTED UNDER 14 & 15 GEO. 5. C. 38.

1. Subject as hereinafter provided, this Schedule applies to persons—

- (a) who have been employed in employment which, by virtue of a certificate given under paragraph (b) or (c) of Part II of the First Schedule to the National Health Insurance Act, 1924, is an excepted employment within the meaning of that Act; and
- (b) who on retirement from such employment whether before or after the fourth day of January nineteen hundred and twenty-six (hereafter in this Schedule referred to as “the said date”) have been granted a superannuation allowance; and
- (c) in respect of whom no contributions under the Widows', Orphans' and Old Age Contributory Pensions Acts, 1925 to 1932, were, or would had they continued to be so employed on or after the said date have been, payable while they were so employed.

2. Subject as hereinafter provided, this Schedule also applies to persons—

- (a) who have been employed in an employment which would have been such an excepted employment as aforesaid had the rate of their remuneration not exceeded two hundred and fifty pounds a year; and
- (b) who on retirement from such employment, whether before or after the said date, have been granted a superannuation allowance; and
- (c) in respect of whom, had the rate of their remuneration not exceeded the amount aforesaid, no contributions under the Widows', Orphans' and Old Age Contributory Pensions Acts, 1925 to 1932, would, or would if they had continued in the employment on or after the said date, have been payable while they were so employed.

3. This Schedule does not apply to any person—

- (a) who retired before the said date and was on that date an insured or exempt person within the meaning of the Widows', Orphans' and Old Age Contributory Pensions Acts, 1925 to 1932; or
 - (b) who retired on or after the said date and was insured within the meaning of the said Acts at the date of his retirement.
-

THIRD SCHEDULE.

Sections 8
and 21.

WEEKLY RATES OF CONTRIBUTIONS PAYABLE BY EMPLOYERS AND EMPLOYED PERSONS.

Class of employed person to whom rate applies.	Weekly rate of contribution.	
	By the employed person.	By the employer.
Men who have attained the age of 21 years -	10d.	10d.
Women who have attained the age of 21 years	9d.	9d.
Young men between the ages of 18 and 21 years -	9d.	9d.
Young women between the ages of 18 and 21 years -	8d.	8d.
Boys between the ages of 16 and 18 years -	5d.	5d.
Girls between the ages of 16 and 18 years -	4½d.	4½d.
Boys and girls who have not attained the age of 16 years -	2d.	2d.

FOURTH SCHEDULE.

Section 36.

WEEKLY RATES OF BENEFIT.

Class of insured contributor.	Rate of benefit.	
	s.	d.
Men who have attained the age of 21 years -	17	0
Women who have attained the age of 21 years -	15	0
Young men between the ages of 18 and 21 years -	14	0
Young women between the ages of 18 and 21 years -	12	0
Boys between the ages of 17 and 18 years -	9	0
Girls between the ages of 17 and 18 years -	7	6
Boys who have not attained the age of 17 years -	6	0
Girls who have not attained the age of 17 years -	5	0

Section 59.

FIFTH SCHEDULE.

PROVISIONS OF ACT OF WHICH AMENDMENTS MAY BE
RECOMMENDED BY THE UNEMPLOYMENT INSURANCE
STATUTORY COMMITTEE.

Provision.	Subject Matter.
Section twenty-two	- - First statutory condition for receipt of benefit.
Section twenty-three	- - Second statutory condition for receipt of benefit.
Section twenty-four	- - Third statutory condition for receipt of benefit.
Section twenty-five	- - Fourth statutory condition for receipt of benefit.
Section twenty-six	- - Disqualification where employment lost through trade dispute.
Section twenty-seven	- - Disqualification where employment lost through misconduct or voluntarily.
Section twenty-eight	- - Disqualification for refusing or failing to apply for work.
Section twenty-nine	- - Disqualification while in prison or workhouse.
Section thirty	- - Miscellaneous disqualifications.
Section thirty-one	- - Right to benefit and period in respect of which it is payable.
Section thirty-two (except subsection (3) thereof).	Reckoning of benefit years.
Section thirty-three	- - Reckoning of contributions and benefit paid in error.
Section thirty-four	- - Reckoning of contributions paid at intervals greater than a week.
Section thirty-five	- - Reckoning of periods of unemployment.
Section thirty-six	- - Ordinary rates of benefit.
Section thirty-seven	- - Increase of benefit in respect of dependent children.
Section thirty-eight	- - Increase of benefit in respect of adult dependants.
Section thirty-nine	- - General provisions as to increase of benefit.

Provision.	Subject Matter.	5TH SCH. —cont.
Section forty-nine (except sub-section (5) thereof).	Payment of benefit pending determination of claim or question.	
Section fifty-five - - -	Orders with respect to benefit in case of special classes of persons.	
Section seventy-five - -	Crediting of contributions to persons receiving whole-time education.	
Section eighty - - -	Power to make grants out of Unemployment Fund towards expenses of attendance at authorised courses.	
Section ninety-six - - -	Discharged seamen, marines, soldiers and airmen.	
Section ninety-seven - -	Short service constables of the metropolitan police force.	
Third Schedule - - -	Weekly rates of contributions payable by employers and employed persons.	
Fourth Schedule - - -	Weekly rates of benefit.	

SIXTH SCHEDULE.

Section 109.

PROVISIONS OF ACT APPLYING FOR PURPOSE OF NORTHERN IRISH UNEMPLOYMENT INSURANCE ENACTMENTS.

Provision.	Subject Matter.
Subsection (5) of section eight	Penalty for not paying contributions.
Section seventeen (except sub-section (3) thereof) - - -	Offences in relation to unemployment cards, books and stamps.
Section eighteen (except sub-section (2) thereof and so much of subsections (3) to (6) thereof as relate to the said subsection (2)).	Recovery of contributions on prosecutions under Act.
Section nineteen - - -	Civil proceedings by employees against employers for neglect to comply with provisions as to contributions.

6TH SCH.
—cont.

Provision.	Subject Matter.
Section twenty - - -	Priority of contributions in cases of winding up and bankruptcy.
Section fifty-three - - -	Benefit to be inalienable.
Section eighty-five - - -	Minister's decision to be conclusive for purposes of proceedings under Act.
Section eighty-six - - -	Penalty for false representations and for failure to comply with Act.
Section eighty-seven - - -	General provisions as to prosecutions under Act.
Section eighty-eight - - -	Civil proceedings to recover sums due to unemployment fund.
Section ninety-one - - -	Proof of age, marriage and death.
Section ninety-three - - -	Exemption of documents from stamp duty.

Section 116.

SEVENTH SCHEDULE.

ENACTMENTS REPEALED.

PART I.

STATUTES.

Session and Chapter.	Short Title.	Extent of Repeal.
10 & 11 Geo. 5. c. 30.	The Unemployment Insurance Act, 1920.	The whole Act.
11 & 12 Geo. 5. c. 1.	The Unemployment Insurance Act, 1921.	The whole Act.
11 & 12 Geo. 5. c. 15.	The Unemployment Insurance (No. 2) Act, 1921.	The whole Act.

Session and Chapter.	Short Title.	Extent of Repeal.
11 & 12 Geo. 5. c. 51.	The Education Act, 1921.	Section one hundred and seven.
12 & 13 Geo. 5. c. 7.	The Unemployment Insurance Act, 1922.	The whole Act.
13 & 14 Geo. 5. c. 2.	The Unemployment Insurance Act, 1923.	The whole Act.
14 & 15 Geo. 5. c. 30.	The Unemployment Insurance (No. 2) Act, 1924.	The whole Act.
15 & 16 Geo. 5. c. 69.	The Unemployment Insurance Act, 1925.	The whole Act.
15 & 16 Geo. 5. c. 70.	The Widows', Orphans' and Old Age Contributory Pensions Act, 1925.	In subsection (1) of section ten, the words from "and" "the provisions of section " thirty-one " to the end of the subsection: in subsection (7) of section fifteen, the words " or of the Un- " employment Insurance " Acts, 1920 to 1924 " : in subsection (1) of section thirty-seven, the words " and " to unemployment benefit " under the Unemployment " Insurance Acts, 1920 to " 1924 " : section thirty-nine: in subsection (1) of section forty-four, the words " except where the " expression is used in " relation to contributions " under the Unemploy- " ment Insurance Acts, " 1920 to 1924," and in subsection (8) of that section, the words from " and so far as " to the end of the subsection.
17 & 18 Geo. 5. c. 30.	The Unemployment Insurance Act, 1927.	The whole Act.
20 & 21 Geo. 5. c. 3.	The Unemployment Insurance Act, 1929.	The whole Act.

7TH SCH.
—cont.

Session and Chapter.	Short title.	Extent of Repeal.
20 & 21 Geo. 5. c. 16.	The Unemployment Insurance Act, 1930.	The whole Act.
21 & 22 Geo. 5. c. 36.	The Unemployment Insurance (No. 3) Act, 1931.	The whole Act.
24 & 25 Geo. 5. c. 29.	The Unemployment Act, 1934.	Part I; section fifty-eight; and the First, Second, Third, Fourth and Fifth Schedules.

PART II.

ORDERS.

Year and No. of Order.	Short Title.	Extent of Revocation.
Statutory Rules and Orders, 1922, No. 185.	The Government of Ireland (Adaptation of Unemployment Insurance Acts) Order, 1922.	Article three, paragraphs (2), (3) and (4) of Article four, and Article eight.
Statutory Rules and Orders, 1924, No. 387.	The Irish Free State (Unemployment Insurance Arrangement) Order, 1924.	The whole Order.
Statutory Rules and Orders, 1927, No. 677.	The Ministry of Labour (Transfer of Powers) Order, 1927.	The whole Order.
Statutory Rules and Orders, 1931, No. 814.	The Unemployment Insurance (National Economy) (No. 1) Order, 1931.	The whole Order.
Statutory Rules and Orders, 1934, No. 1324.	The Unemployment Insurance (Removal of Difficulties) Order, 1934.	The whole Order.